An Act

ENROLLED HOUSE
BILL NO. 3521

By: Marti of the House

and

Reinhardt of the Senate

An Act relating to financial institutions; creating the Oklahoma Money Transmission Modernization Act; providing legislative intent; defining terms; exempting certain individuals from the Oklahoma Money Transmission Modernization Act; permitting the Commissioner of the Banking Department to require proof of exemption; empowering the Commissioner in order to carry out the purposes of the act; granting the Commissioner broad administrative authority to administer, interpret, and enforce act; authorizing Commissioner to promulgate rules; authorizing the Commissioner to recover costs by imposing and collecting fees and costs; exempting information obtained by the Commissioner from the Oklahoma Open Records Act; permitting disclosure of information under certain circumstances; permitting the Commissioner to disclose list of all licensees and aggregated financial or transactional data; listing information that can be disclosed; permitting the Commissioner to conduct investigations to administer and enforce the act; granting the Commissioner power to administer oaths, subpoena witnesses, compel attendance, take evidence, and require production of documents; authorizing the Commissioner to file an application with a district court to order a person to appear before the Commissioner; authorizing the Commissioner to conduct an examination or investigation of a licensee; listing permissible examination or investigation approaches; requiring a licensee or delegate provide all records to the Commissioner; requiring a licensee to pay all costs reasonably incurred during an examination; authorizing and encouraging Commissioner to participate in multistate supervisory processes;

clarifying section does not constitute waiver of Commissioner’s authority to conduct an examination or investigation; clarifying effect of federal law on act; prohibiting a person from engaging in the business of money transmission unless licensed; exempting certain persons from licensure; providing that a license is not transferable or assignable; empowering and encouraging the Commissioner to establish consistent licensing between the state; empowering and encouraging the Commissioner to establish relationships or contracts with the Nationwide Multistate Licensing System and Registry; authorizing the Commissioner to utilize the Nationwide Multistate Licensing System and Registry for all aspect of licensing; permitting the Commissioner to waive or modify requirements as necessary to participate in the Nationwide Multistate Licensing System and Registry; requiring applicants for license use form prescribed by the Commissioner; authorizing Commissioner to create form and change form as necessary; requiring the application to contain certain information; adding application requirements for corporations, limited liability companies, partnerships, or other legal entities; providing for a nonrefundable application fee of Four Thousand Dollars and a nonrefundable license fee of Three Thousand Dollars; permitting the Commissioner to waive one or more of the application requirements; requiring an individual in control of a licensee or applicant, an individual that seeks to acquire control of a licensee, or each key individual to furnish to the Commissioner certain information; requiring international individuals to provide certain information; providing process for granting or denying applications for licensure; clarifying meaning of determination by the Commissioner; authorizing the Commissioner to conduct on-site investigation of an applicant; requiring the application to pay reasonable cost of on-site investigation; permitting the Commissioner to issue license if certain conditions are met; requiring formal written notice of a denial of a license application and the specific reasons for the denial; authorizing applicant to appeal Commissioner’s denial to the Oklahoma State Banking Board; permitting denial of an applicant if applicant was denied a license in the state in which the applicant is located or based on the findings of another state; requiring a license be renewed annually; providing for a Three Thousand Dollar renewal fee; providing procedure for renewal; permitting the Commissioner to extend a renewal date for good cause; permitting the Commissioner to suspend or revoke a license in accordance with this act; requiring prior written approval for any person to acquire control of a licensee; providing procedure for acquiring control of a licensee; providing for a nonrefundable fee of Four Thousand Dollars; authorizing the Commissioner to approve an acquisition of control if certain conditions are met; requiring formal notice of denial of an application to acquire control and to specify the reasons for denial; permitting applicant to appeal denial to the Oklahoma State Banking Board; exempting certain persons from requirements; requiring notification to the Commissioner of acquisition of control by exempted persons; exempting certain circumstances from application requirement; providing procedure for adding or replacing any key individual; requiring licensees to submit a report of condition; providing procedure and requirements for report; requiring yearly audited financial statement; setting requirements for audited financial statement; requiring report of authorized delegates; providing for contents of the report; requiring licensee file a report if certain events occur or the occurrence of a felony charge or conviction; requiring licensees to comply with federal and state reporting requirements; providing for the retention of records; permitting records be maintained in any form; requiring records be open to inspection by Commissioner; defining remit; providing procedure to be authorized to conduct business through an authorized delegate; requiring written contract; requiring licensee to notify authorized delegate of licensee’s suspension, revocation, surrender, or expiration; providing effect of comingling funds by authorized delegate; prohibiting use of subdelegate; prohibiting a person from engaging in the business of money transmission on behalf of a person not incompliance with act; requiring licensees to forward money in accordance with an agreement unless licensee has a reasonable belief sender is victim of fraud or of a possible occurrence of a crime or violation of a law, rule, or regulation; exempting certain transmission of money from certain requirements; requiring licensee refund money upon written request except under certain circumstances; exempting certain transmission of money from requirements of section; defining receipt; requiring licensee or authorized delegate provide a receipt; listing requirements for receipt; requiring licensees that provide payroll processing services to provide certain information; requiring licensees to retain certain net worth; authorizing the Commissioner to exempt licensees for good cause from net worth requirement; requiring surety bond; requiring licensees to maintain permissible investments; authorizing the Commissioner to limit the extent to which certain specific investments may be considered permissible investments; authorizing statutory trust; exempting permissible investments impressed with a trust from attachment, levy, or sequestration except for a beneficiary; requiring Commissioner to notify other states of existence of statutory trust; authorizing Commissioner to allow other types of investments; providing for types of permissible investments; authorizing the Commissioner to suspend or revoke a license for certain reasons; permitting the Commissioner to consider certain information in determining whether a licensee is engaging in unsafe or unsound practice; permitting the Commissioner to issue an order suspending or revoking the designation of an authorized delegate if the Commissioner makes certain findings; permitting the Commissioner to consider certain information in determining whether an authorized delegate is engaging in unsafe or unsound practice; permitting the authorized delegate to apply for relief from suspension or revocation according to procedure prescribed by the Commissioner; authorizing the Commissioner to issue cease and desist orders; permitting licensee or authorized delegate to appeal an order to cease and desist; authorizing the Commissioner to enter into consent orders; providing procedure and requirements for consent orders; deeming consent orders are final order and may not be appealed; creating a Class D1 felony for any person who intentionally makes a false statement, misrepresentation, or false certification in a record filed or required to be maintained under this act or that intentionally makes a false entry or omits a material entry in such a record; prescribing penalties; creating a Class D1 felony for any person who knowingly engages in an activity for which a license is required under this act without being licensed under this act; prescribing penalties; authorizing the Commissioner to assess fines for violation of the act in an amount not to exceed Five Thousand Dollars per violation; permitting the Commissioner to assess costs and expenses for investigation and prosecution; permitting the Commissioner to issue a cease and desist for violation of Section 12 of this act; authorizing the Commissioner to petition the District Court of Oklahoma County to issue a temporary restraining order; providing effect of cease and desist order; permitting licensee or authorized delegate to file an appeal with the Oklahoma State Banking Board; authorizing transition period for persons providing payroll processing services in this state; amending Section 2, Chapter 363, O.S.L. 2025 (6 O.S. Supp. 2025, Section 1520.1), which relates to digital asset kiosk operators; updating reference; amending Section 14, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20N), which relates to Class D1 offenses; adding crimes to list; amending 21 O.S. 2021, Section 1268.8, as amended by Section 129, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1268.8), which relates to the use of money transmission in violation of the Oklahoma Antiterrorism Act; updating references; amending 63 O.S. 2021, Sections 2-503.1b, 2-503.1d, as amended by Section 278, Chapter 486, O.S.L. 2025 (63 O.S. Supp. 2025, Section 2-503.1d), 2-503.1e, as amended by Section 279, Chapter 486, O.S.L. 2025 (63 O.S. Supp. 2025, Section 2-503.1e), 2-503.1h, 2-503.1i, 2-503.1j, and 2-503.1l, which relate to the enforcement and administration of the Uniform Dangerous Substances Act; updating references; repealing 6 O.S. 2021, Sections 1511, 1512, 1513, 1514, and 1515, which relate to the Oklahoma Financial Transaction Reporting Act;

providing for codification; and providing an effective date.

SUBJECT: Financial institutions

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1551 of Title 6, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Money Transmission Modernization Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1552 of Title 6, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Money Transmission Modernization Act replaces existing state money transmission laws. It is the intent of the Legislature that the provisions of this act accomplish the following:

1. Ensure states can coordinate in all areas of regulation, licensing, and supervision to eliminate unnecessary regulatory burden and more effectively utilize regulator resources;

2. Protect the public from financial crime;

3. Standardize the types of activities that are subject to licensing or otherwise exempt from licensing; and

4. Modernize safety and soundness requirements to ensure customer funds are protected in an environment that supports innovative and competitive business practices.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1553 of Title 6, unless there is created a duplication in numbering, reads as follows:

As used in the Oklahoma Money Transmission Modernization Act:

1. “Acting in concert” means persons knowingly acting together with a common goal of jointly acquiring control of a licensee whether or not pursuant to an express agreement;

2. “Authorized delegate” means any person a licensee designates to engage in money transmission on behalf of the licensee;

3. “Average daily money transmission liability” means the amount of the licensee’s outstanding money transmission obligations in Oklahoma at the end of each day in a given period of time, added together, and divided by the total number of days in the given period of time. For purposes of calculating average daily money transmission liability under this act for any licensee required to do so, the given period of time shall be the quarters ending March 31, June 30, September 30, and December 31;

4. “Bank Secrecy Act” means the Bank Secrecy Act, 31 U.S.C., Section 5311 et seq. and its implementing regulations, as amended and recodified from time to time;

5. “Closed loop stored value” means stored value that is redeemable by the issuer only for goods or services provided by the issuer or its affiliate or franchisees of the issuer or its affiliate, except to the extent required by applicable law to be redeemable in cash for its cash value;

6. “Commissioner” means the State Banking Commissioner of the Oklahoma State Banking Department as provided for in subsection B of Section 201 of Title 6 of the Oklahoma Statutes or a person designated by the Commissioner and acting under the Commissioner’s direction and authority;

7. a. “Control” means a controlling influence as determined by the Commissioner, or the power to:

(1) directly or indirectly vote at least twenty-five percent (25%) of the outstanding voting shares or voting interests of a licensee or person in control of a licensee,

(2) elect or appoint a majority of key individuals or executive officers, managers, directors, trustees, or other persons exercising managerial authority over a person in control of a licensee, or

(3) directly or indirectly exercise a controlling influence over the management or policies of a licensee or person in control of a licensee.

b. A person is presumed to exercise a controlling influence when the person holds the power to vote, directly or indirectly, at least ten percent (10%) of the outstanding voting shares or voting interests of a licensee or person in control of a licensee. The presumption of control defined by this subparagraph may be rebutted by evidence that the person who is presumed to exercise a controlling influence is a passive investor.

c. For purposes of determining the percentage of a person controlled by any other person, the person's interest shall be aggregated with the interest of any other immediate family member, including the person's spouse, parents, children, siblings, mothers- and fathers-in-law, sons- and daughters-in-law, brothers- and sisters-in-law, and any other person who shares such person's home.

d. The Commissioner shall have broad authority to designate a person as someone who has controlling influence if the person owns voting shares of a licensee or if the person acts on behalf of someone who owns voting shares of a licensee. A determination made by the Commissioner under this paragraph is not rebuttable;

8. "Currency" means the coin and paper money issued by the United States or another country that is designated as legal tender, circulates, and is customarily used and accepted as a medium of exchange in the country of issuance;

9. "Department" means the Oklahoma State Banking Department;

10. "Digital asset" means the same as defined in Section 1520 of Title 6 of the Oklahoma Statutes;

11. "Digital asset kiosk" means the same as defined in Section 1520 of Title 6 of the Oklahoma Statutes;

12. “Digital asset kiosk operator” means the same as defined in Section 1520 of Title 6 of the Oklahoma Statutes;

13. “Eligible rating” means a sufficiently high credit rating given by an eligible rating service. If a security has differing credit ratings given by multiple eligible rating services, the highest rating shall apply when determining whether the security has an eligible rating. For purposes of this definition, a sufficiently high credit rating is a credit rating of any of the three highest rating categories provided by an eligible rating service, including:

a. a long-term credit rating of A- or higher by S&P Global Ratings,

b. a short-term credit rating of A-2, SP-2, or higher by S&P Global Ratings, or

c. the relative equivalent rating from an eligible rating service that does not have a rating described by subparagraphs a and b of this paragraph;

14. “Eligible rating service” means any nationally recognized statistical rating organization as defined by the United States Securities and Exchange Commission, and any other organization designated by the Commissioner by rule or order;

15. “Federally insured depository financial institution” means a bank, credit union, savings and loan association, trust company, savings association, savings bank, industrial bank, or industrial loan company organized under the laws of the United States, or any state of the United States, when such bank, credit union, savings and loan association, trust company, savings association, savings bank, industrial bank, or industrial loan company has federally insured deposits;

16. “In this state” means:

a. for a transaction requested in person, a physical location within this state, or

b. for a transaction requested electronically or by phone, a determination that the person requesting the transaction is in this state based on:

(1) information provided by the person regarding:

(a) if the person is an individual, the location of the individual’s residential address, or

(b) if the person is a business entity, the entity’s principal place of business or other physical address location, and

(2) any records associated with the person that the provider of the money transmission has that indicate the person’s location, including an address associated with the person’s account;

17. “Individual” means a natural person;

18. “Key individual” means any individual ultimately responsible for establishing or directing policies and procedures of the licensee, such as an executive officer, manager, director, or trustee;

19. “Licensee” means a person licensed under the Oklahoma Money Transmission Modernization Act;

20. “Material litigation” means litigation that, according to United States generally accepted accounting principles, is significant to a person’s financial health and would be required to be disclosed in the person’s annual audited financial statements, report to shareholders, or similar records;

21. “Money” or “monetary value” means currency or a claim that can be converted into currency through a financial institution, electronic payments network, or other formal or informal payment system. The term includes stablecoin that:

a. is pegged to a sovereign currency,

b. is fully backed by assets held in reserve, and

c. grants a holder of the stablecoin the right to redeem the stablecoin for sovereign currency from the issuer;

22. “Money transmission” means any of the following:

a. selling or issuing payment instruments to a person located in this state,

b. selling or issuing stored value to a person located in this state,

c. receiving money for transmission from a person located in this state, and

d. payroll processing services.

Money transmission does not mean the provision of solely online or telecommunications services or network access;

23. "MSB accredited state" means a state agency that is accredited by the Conference of State Bank Supervisors and Money Transmitter Regulators Association for money transmission licensing and supervision;

24. "Multistate licensing process" means any agreement entered into by and among state regulators relating to coordinated processing of applications for money transmission licenses, applications for the acquisition of control of a licensee, control determinations, or notice and information requirements for a change of key individuals;

25. "NMLS" means the Nationwide Multistate Licensing System and Registry developed by the Conference of State Bank Supervisors and the American Association of Residential Mortgage Regulators and owned and operated by the State Regulatory Registry, LLC, or any successor or affiliated entity, for the licensing and registration of persons in financial services industries;

26. "Outstanding money transmission obligations" shall be established and extinguished in accordance with applicable state law and shall mean:

a. any payment instrument or stored value:

(1) that has been:

(a) issued or sold by a money transmission licensee to a person located in any state, territory, or possession of the United States, the District of Columbia, the

Commonwealth of Puerto Rico, or a United States military installation that is located in a foreign country, or

(b) reported as sold by an authorized delegate to a person who is located in any state, territory, or possession of the United States, the District of Columbia, the Commonwealth of Puerto Rico, or a United States military installation that is located in a foreign country, and

(2) that has not been:

(a) paid or refunded by or for the licensee, or

(b) escheated in accordance with applicable abandoned property laws, or

b. money received for money transmission services by a money transmission licensee or an authorized delegate from a person located in any state, territory, or possession of the United States, the District of Columbia, the Commonwealth of Puerto Rico, or a United States military installation that is located in a foreign country that has not been:

(1) received by the payee or refunded to the person, or

(2) escheated in accordance with applicable abandoned property laws;

27. "Passive investor" means a person who:

a. does not have the power to elect a majority of key individuals or executive officers, managers, directors, trustees, or other persons exercising managerial authority of a person in control of a licensee,

b. is not employed by and does not have any managerial duties of the licensee or person in control of a licensee,

c. does not have the power to exercise, directly or indirectly, a controlling influence over the management or policies of a licensee or person in control of a licensee, and

d. either:

(1) attests to subparagraphs a, b, and c of this paragraph, in a form and medium prescribed by the Commissioner, or

(2) commits to subparagraphs a, b, and c of this paragraph in a written document;

28. "Payment instrument" means a written or electronic check, draft, money order, traveler's check, or other written or electronic instrument for the transmission or payment of money or monetary value, whether or not negotiable. The term does not include stored value or any instrument that is:

a. redeemable by the issuer only for goods or services provided by the issuer or its affiliate or franchisees of the issuer or its affiliate, except to the extent required by applicable law to be redeemable in cash for its cash value, or

b. not sold to the public but issued and distributed as part of a loyalty, rewards, or promotional program;

29. "Payroll processing services" means receiving money for transmission pursuant to a contract with a person to deliver wages or salaries, make payment of payroll taxes to state and federal agencies, make payments relating to employee benefit plans, or make distributions of other authorized deductions from wages or salaries. The term payroll processing services does not include an employer performing payroll processing services on its own behalf or on behalf of its affiliate, or a professional employer organization subject to regulation under other applicable state law;

30. "Person" means any individual, general partnership, limited partnership, limited liability company, corporation, trust, association, joint stock corporation, or other corporate entity identified by the Commissioner;

31. “Receiving money for transmission” or “money received for transmission” means receiving money or monetary value in the United States for transmission within or outside the United States by electronic or other means;

32. “Stored value” means monetary value representing a claim against the issuer evidenced by an electronic or digital record and that is intended and accepted for use as a means of redemption for money or monetary value or payment for goods or services. The term includes, but is not limited to, “prepaid access” as defined by 31 C.F.R., Section 1010.100, as amended. Notwithstanding the foregoing, the term stored value does not include a payment instrument or closed loop stored value, or stored value not sold to the public but issued and distributed as part of a loyalty, rewards, or promotional program; and

33. “Tangible net worth” means the aggregate assets of a licensee excluding all intangible assets, less liabilities, as determined in accordance with United States generally accepted accounting principles.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1554 of Title 6, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Money Transmission Modernization Act shall not apply to:

1. An operator of a payment system to the extent that it provides processing, clearing, or settlement services, between or among persons exempted by this section or licensees, in connection with wire transfers, credit card transactions, debit card transactions, stored-value transactions, automated clearing house transfers, or similar funds transfers;

2. A person appointed as an agent of a payee to collect and process a payment from a payor to the payee for goods or services, other than money transmission itself, provided to the payor by the payee, provided that:

a. there exists a written agreement between the payee and the agent directing the agent to collect and process payments from payors on the payee’s behalf,

b. the payee holds the agent out to the public as accepting payments for goods or services on the payee’s behalf, and

c. payment for the goods or services is treated as received by the payee upon receipt by the agent so that the payor’s obligation is extinguished and there is no risk of loss to the payor if the agent fails to remit the funds to the payee;

3. A person that acts as an intermediary by processing payments between an entity that has directly incurred an outstanding money transmission obligation to a sender, and the sender’s designated recipient, provided that the entity:

a. is properly licensed or exempt from licensing requirements under this act,

b. provides a receipt, electronic record, or other written confirmation to the sender identifying the entity as the provider of money transmission in the transaction, and

c. bears sole responsibility to satisfy the outstanding money transmission obligation to the sender, including the obligation to make the sender whole in connection with any failure to transmit the funds to the sender’s designated recipient;

4. The United States or a department, agency, or instrumentality thereof, or its agent;

5. Money transmission by the United States Postal Service or by an agent of the United States Postal Service;

6. A state, county, city, or any other governmental agency or governmental subdivision or instrumentality of a state, or its agent;

7. A federally insured depository financial institution, bank holding company, office of an international banking corporation, foreign bank that establishes a federal branch pursuant to the International Banking Act of 1978, 12 U.S.C., Section 3101 et seq., as amended, corporation organized pursuant to the Bank Service Company Act, 12 U.S.C., Sections 1861 through 1867, as amended, or

corporation organized under the Edge Act, 12 U.S.C., Sections 611 through 633, as amended;

8. Electronic funds transfer of governmental benefits for a federal, state, county, or governmental agency by a contractor on behalf of the United States or a department, agency, or instrumentality thereof, or on behalf of a state or governmental subdivision, agency, or instrumentality thereof;

9. A board of trade designated as a contract market under the Commodity Exchange Act, 7 U.S.C., Sections 1 through 25, as amended, or a person that, in the ordinary course of business, provides clearance and settlement services for a board of trade to the extent of its operation as or for such a board;

10. A registered futures commission merchant under the federal commodities laws to the extent of its operation as such a merchant;

11. A person registered as a securities broker-dealer under federal or state securities laws to the extent of its operation as such a broker-dealer;

12. An individual employed by a licensee, authorized delegate, or any person exempted from the licensing requirements of this act when acting within the scope of employment and under the supervision of the licensee, authorized delegate, or exempted person as an employee and not as an independent contractor;

13. A person expressly appointed as a third-party service provider to or agent of an entity exempt under paragraph 7 of this section, solely to the extent that:

a. such service provider or agent is engaging in money transmission on behalf of and pursuant to a written agreement with the exempt entity that sets forth the specific functions that the service provider or agent is to perform, and

b. the exempt entity assumes all risk of loss and all legal responsibility for satisfying the outstanding money transmission obligations owed to purchasers and holders of the outstanding money transmission obligations upon receipt of the purchaser’s or holder’s money or monetary value by the service provider or agent; and

14. A person exempt by regulation or order if the Commissioner finds such exemption to be in the public interest and that the regulation of such person is not necessary for the purposes of this act.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1555 of Title 6, unless there is created a duplication in numbering, reads as follows:

The Commissioner may require any person claiming to be exempt from licensing pursuant to Section 4 of this act to provide information and documentation to the Commissioner demonstrating that it qualifies for any claimed exemption.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1556 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. In order to carry out the purposes of the Oklahoma Money Transmission Modernization Act, the Commissioner may, subject to the provisions of subsections A and B of Section 7 of this act:

1. Enter into agreements or relationships with other government officials or federal and state regulatory agencies and regulatory associations to improve efficiencies and reduce regulatory burden by standardizing methods or procedures and sharing resources, records, or related information obtained under this act;

2. Use, hire, contract, or employ analytical systems, methods, or software to examine or investigate any person subject to this act;

3. Accept from other state or federal government agencies or officials licensing, examination, or investigation reports created by such other state or federal government agencies or officials; and

4. Accept audit reports made by an independent certified public accountant or other qualified third-party auditor for an applicant or licensee and incorporate the audit report into any report of examination or investigation.

B. The Commissioner shall have broad administrative authority to:

1. Administer, interpret, and enforce this act;

2. Promulgate rules implementing this act; and

3. Recover the cost of administering and enforcing this act by imposing and collecting proportionate and equitable fees and costs associated with applications, examinations, investigations, and other actions required for the purposes of this act.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1557 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Except as otherwise provided in subsection B of this section, all information or reports obtained by the Commissioner from an applicant, licensee, or authorized delegate, and all information contained in or related to an examination, investigation, operating report, or condition report prepared by, on behalf of, or for the use of the Commissioner, or financial statements, balance sheets, or authorized delegate information, are confidential and are not subject to disclosure under the Oklahoma Open Records Act.

B. The Commissioner may disclose information not otherwise subject to disclosure under subsection A of this section to representatives of state or federal agencies who agree in a record that they will maintain the confidentiality of the information or where the Commissioner finds that the release is reasonably necessary for the protection and interest of the public in accordance with the Oklahoma Open Records Act.

C. This section shall not prohibit the Commissioner from disclosing to the public a list of all licensees or the aggregated financial or transactional data concerning those licensees.

D. Information contained in the records of the Department that is not confidential and may be made available to the public either on the Department's website, upon receipt by the Department of a written request, or in the NMLS shall include:

1. The name, business address, telephone number, and unique identifier of a licensee;

2. The business address of a licensee's registered agent for service;

3. The name, business address, and telephone number of all authorized delegates;

4. The terms of or a copy of any bond filed by a licensee, provided that confidential information, including, but not limited to, prices and fees for such bond is redacted;

5. Copies of any nonconfidential final orders of the Department relating to any violation of this act or regulations promulgated pursuant to this act; and

6. Notice of the imposition of an administrative fine or penalty under this act.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1558 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. The Commissioner may conduct investigations in or outside this state and the United States as the Commissioner considers necessary or appropriate to administer and enforce the Oklahoma Money Transmission Modernization Act.

B. For purposes of an investigation, examination, or other proceeding under this act, the Commissioner may:

1. Administer oaths or cause oaths to be administered;

2. Subpoena witnesses;

3. Compel the attendance of witnesses;

4. Take evidence; and

5. Require the production of any document that the Commissioner determines to be relevant to the inquiry.

C. If a person refuses to obey a subpoena, the District Court of Oklahoma County, on application by the Commissioner, may issue an order requiring the person to appear before the Commissioner and produce documents or give evidence regarding the matter under investigation.

D. The Commissioner may employ a person, request the Attorney General, or request any other state, federal, or local law enforcement agency to assist in enforcing this act.

E. The Commissioner may recover the reasonable costs incurred in connection with an investigation conducted under this act from the person that is the subject of the investigation.

SECTION 9. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1559 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. The Commissioner may conduct an examination or investigation of a licensee or authorized delegate or otherwise take independent action authorized by this act or by a rule adopted or order issued under this act as reasonably necessary or appropriate to administer and enforce this act, regulations promulgated pursuant to this act, and other applicable law, including the Bank Secrecy Act and the USA PATRIOT Act. The Commissioner may:

1. Conduct an examination either on-site or off-site;

2. Conduct an examination in conjunction with an examination conducted by representatives of other state agencies or agencies of another state or of the federal government;

3. Accept the examination report of another state agency or an agency of another state or of the federal government, or a report prepared by an independent accounting firm, which on being accepted is considered for all purposes as an official report of the Commissioner; and

4. Summon and examine under oath a key individual or employee of a licensee or authorized delegate and require the person to produce records regarding any matter related to the condition and business of the licensee or authorized delegate.

B. A licensee or authorized delegate shall provide, and the Commissioner shall have full and complete access to, all records the Commissioner may reasonably require to conduct a complete examination. The records shall be provided at the location and in the format specified by the Commissioner, provided, the Commissioner may utilize multistate record production standards and examination procedures when such standards reasonably achieve the requirements of this section.

C. Unless otherwise directed by the Commissioner, a licensee shall pay all costs reasonably incurred in connection with an examination of the licensee or the licensee’s authorized delegates.

SECTION 10. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1560 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. To efficiently and effectively administer and enforce this act and to minimize regulatory burden, the Commissioner shall be authorized and encouraged to participate in multistate supervisory processes established between states and coordinated through the Conference of State Bank Supervisors, Money Transmitter Regulators Association, and affiliates and successors thereof for all licensees that hold licenses in this state and other states. As a participant in multistate supervision, the Commissioner may:

1. Cooperate, coordinate, and share information with other state and federal regulators in accordance with Section 7 of this act;

2. Enter into written cooperation, coordination, or information-sharing contracts or agreements with organizations the membership of which is made up of state or federal governmental agencies; and

3. Cooperate, coordinate, and share information with organizations, the membership of which is made up of state or federal governmental agencies, provided that the organizations agree in writing to maintain the confidentiality and security of the shared information in accordance with Section 7 of this act.

B. The Commissioner may not waive, and nothing in this section shall constitute a waiver of, the Commissioner’s authority to conduct an examination or investigation or otherwise take independent action authorized by this act or a rule adopted or order issued under this act to enforce compliance with applicable state or federal law.

C. A joint examination or investigation, or acceptance of an examination or investigation report, shall not waive an examination assessment provided for in this act.

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1561 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. In the event state money transmission jurisdiction is conditioned on a federal law, any inconsistencies between a provision of this act and the federal law governing money transmission shall be governed by the applicable federal law to the extent of the inconsistency.

B. In the event of any inconsistencies between this act and a federal law that governs pursuant to this section, the Commissioner may provide interpretive guidance that:

1. Identifies the inconsistency; and

2. Identifies the appropriate means of compliance with federal law.

SECTION 12. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1562 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A person may not engage in the business of money transmission or advertise, solicit, or hold itself out as providing money transmission unless the person is licensed under this act;

B. Subsection A of this section shall not apply to:

1. A person that is an authorized delegate of a person licensed under this act acting within the scope of authority conferred by a written contract with the licensee; or

2. A person exempt pursuant to Section 4 of this act and does not engage in money transmission outside the scope of such exemption.

C. A license issued under this act is not transferable or assignable.

SECTION 13. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1563 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. To establish consistent licensing between this state and other states, the Commissioner shall be authorized and encouraged to:

1. Implement all licensing provisions of this act in a manner consistent with other states that have adopted this act or multistate licensing processes; and

2. Participate in nationwide protocols for licensing cooperation and coordination among state regulators provided that such protocols are consistent with this act.

B. In order to fulfill the purposes of this act, the Commissioner shall be authorized and encouraged to establish relationships or contracts with NMLS or other entities designated by NMLS to enable the Commissioner to:

1. Collect and maintain records;

2. Coordinate multistate licensing processes and supervision processes;

3. Process fees; and

4. Facilitate communication between states and licensees or other persons subject to this act.

C. The Commissioner shall be authorized and encouraged to utilize NMLS for all aspects of licensing in accordance with this act, including, but not limited to, license applications, applications for acquisitions of control, surety bonds, reporting, criminal history background checks, credit checks, fee processing, and examinations.

D. The Commissioner shall be authorized and encouraged to utilize NMLS forms, processes, and functionalities in accordance with this act. In the event NMLS does not provide functionality, forms, or processes for a provision of this act, the Commissioner shall be authorized and encouraged to strive to implement the requirements in a manner that facilitates uniformity with respect to licensing, supervision, reporting, and regulation of licensees which are licensed in multiple jurisdictions.

E. For the purpose of participating in the Nationwide Multistate Licensing System and Registry, the Commissioner shall be authorized to waive or modify, in whole or in part, by rule, policy, or order, any or all of the requirements and to establish new requirements as reasonably necessary to participate in the Nationwide Multistate Licensing System and Registry.

SECTION 14. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1564 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Applicants for a license shall apply in a form and in a medium as prescribed by the Commissioner. Each form shall contain content as set forth by rule, policy, instruction, or procedure of the Commissioner and may be changed or updated at the discretion of the Commissioner to carry out the purposes of this act and maintain consistency with NMLS licensing standards and practices. The application must state or contain, as applicable:

1. The legal name and residential and business addresses of the applicant and any fictitious or trade name used by the applicant in conducting its business;

2. A list of any criminal convictions of the applicant and any material litigation in which the applicant has been involved in the ten-year period preceding the submission of the application;

3. A description of any money transmission previously provided by the applicant and the money transmission the applicant seeks to provide in this state;

4. A list of the applicant’s proposed authorized delegates and the locations in this state where the applicant and its authorized delegates propose to engage in money transmission;

5. A list of other states in which the applicant is licensed to engage in money transmission and any license revocations, suspensions, or other disciplinary action taken against the applicant in another state;

6. Information concerning any bankruptcy or receivership proceedings affecting the applicant or a person in control of the applicant;

7. A sample of a contract for authorized delegates, if applicable;

8. A sample of a payment instrument or stored value, as applicable;

9. The name and address of any federally insured depository financial institution through which the applicant plans to conduct money transmission; and

10. Any other information the Commissioner or NMLS reasonably requires with respect to the applicant.

B. If an applicant is a corporation, limited liability company, partnership, or other legal entity, the applicant shall also provide:

1. The date of the applicant's incorporation or formation and the state or country of incorporation or formation;

2. If applicable, a certificate of good standing from the state or country in which the applicant is incorporated or formed;

3. A brief description of the structure or organization of the applicant, including any parent corporations or subsidiaries of the applicant, and whether any parent corporations or subsidiaries are publicly traded;

4. The legal name, any fictitious or trade name, all business and residential addresses, and the employment history, as applicable, in the ten-year period preceding the submission of the application of each key individual and person in control of the applicant;

5. A list of any criminal convictions and material litigation in which a person in control of the applicant that is not an individual has been involved in the ten-year period preceding the submission of the application;

6. A copy of audited financial statements of the applicant for the most recent fiscal year and for the two-year period preceding the submission of the application or, if determined to be acceptable to the Commissioner, certified unaudited financial statements for the most recent fiscal year or other period acceptable to the Commissioner;

7. A certified copy of unaudited financial statements of the applicant for the most recent fiscal quarter;

8. If the applicant is a publicly traded corporation, a copy of the most recent report filed with the United States Securities and Exchange Commission under Section 13 of the federal Securities Exchange Act of 1934, 15 U.S.C., Section 78m, as amended;

9. If the applicant is a wholly owned subsidiary of:

a. a corporation publicly traded in the United States, a copy of audited financial statements for the parent corporation for the most recent fiscal year or a copy of the parent corporation’s most recent report filed under Section 13 of the federal Securities Exchange Act of 1934, 15 U.S.C. Section 78m, as amended, or

b. a corporation publicly traded outside the United States, a copy of similar documentation filed with the regulator of the parent corporation’s domicile outside the United States;

10. The name and address of the applicant’s registered agent in this state; and

11. Any other information the Commissioner reasonably requires with respect to the applicant.

C. A nonrefundable application fee of Four Thousand Dollars ($4,000.00) and a nonrefundable license fee of Three Thousand Dollars ($3,000.00) shall accompany an application for a license under this section.

D. The Commissioner may waive one or more requirements of subsections A and B of this section or permit an applicant to submit other information in lieu of the required information.

SECTION 15. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1565 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Any individual in control of a licensee or applicant, any individual that seeks to acquire control of a licensee, and each key individual shall furnish to the Commissioner through the NMLS the following items:

1. The individual's fingerprints for purposes of a national criminal history background check unless the person currently resides outside of the United States and has resided outside of the United States for the last ten (10) years; and

2. Personal history and experience, in a form and in a medium prescribed by the Commissioner, to obtain the following:

a. an independent credit report from a consumer reporting agency unless the individual does not have a Social Security number, in which case, this requirement shall be waived,

b. information related to any criminal convictions or pending charges, and

c. information related to any regulatory or administrative action and any civil litigation involving claims of fraud, misrepresentation, conversion, mismanagement of funds, breach of fiduciary duty, or breach of contract.

B. If the individual has resided outside of the United States at any time in the last ten (10) years, the individual shall also provide an investigative background report prepared by an independent search firm that meets the following requirements:

1. The search firm shall:

a. demonstrate that it has sufficient knowledge and resources and employs accepted and reasonable methodologies to conduct the research for the background report, and

b. not be affiliated with or have an interest in the individual it is researching; and

2. The investigative background report shall be written in the English language and shall contain the following:

a. if available in the individual's current jurisdiction of residency, a comprehensive credit report, or any equivalent information obtained or generated by the independent search firm to accomplish such report, including a search of the court data in the countries, provinces, states, cities, towns, and contiguous areas where the individual resided and worked,

b. criminal records information for the past ten (10) years, including, but not limited to, felonies, misdemeanors, or similar convictions for violations of law in the countries, provinces, states, cities, towns, and contiguous areas where the individual resided and worked,

c. employment history,

d. media history, including an electronic search of national and local publications, wire services, and business applications, and

e. financial-services-related regulatory history, including, but not limited to, money transmission, securities, banking, insurance, and mortgage-related industries.

SECTION 16. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1566 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. When an application for an original license under this act is determined by the Commissioner to include all the items and address all the matters that are required, the application shall be deemed complete and the Commissioner shall notify the applicant in writing of the date on which the application was deemed complete, and:

1. The Commissioner shall approve or deny the application within one hundred eighty (180) days after the completion date; or

2. The Commissioner may extend the review period at the Commissioner's discretion.

B. A determination by the Commissioner that an application is complete and is accepted for processing shall mean only that the application, on its face, appears to include all of the items, including the criminal background check response, and address all of the matters that are required. A determination by the Commissioner that an application is complete and accepted for processing shall not be considered a determination of the application or of the sufficiency of the information provided.

C. When an application is filed and considered complete, the Commissioner shall investigate the applicant's financial condition and responsibility, financial and business experience, character, and general fitness. The Commissioner may conduct an on-site investigation of the applicant. The applicant shall pay the reasonable cost of any on-site investigation. The Commissioner may issue a license to an applicant under this section if the Commissioner finds all the following conditions have been fulfilled:

1. The applicant has complied with Sections 14 and 15 of this act; and

2. The financial condition and responsibility, financial and business experience, competence, character, and general fitness of the applicant, and the competence, experience, character, and general fitness of the key individuals and persons in control of the applicant, indicate that it is in the best interest of the public to permit the applicant to engage in money transmission.

D. If an applicant avails itself or is otherwise subject to a multistate licensing process:

1. The Commissioner shall be authorized and encouraged to accept the investigation results of a lead investigative state for the purpose of subsection C of this section if the lead investigative state has sufficient staffing, expertise, and meets the minimum standards; or

2. If Oklahoma is a lead investigative state, the Commissioner shall be authorized and encouraged to investigate the applicant pursuant to subsection C of this section and the timeframes established by agreement through the multistate licensing process; provided, however, in no case shall such timeframe be noncompliant with the application period provided in paragraph 1 of subsection A of this section.

E. The Commissioner shall issue a formal written notice of the denial of a license application within thirty (30) days of the decision to deny the application. The Commissioner shall set forth in the notice of denial the specific reasons for the denial of the application. If an applicant whose application is denied by the Commissioner under this section chooses to appeal the denial, the applicant shall file an appeal with the Oklahoma State Banking Board within fifteen (15) calendar days after the date of the written notice of the denial.

F. The Commissioner may deny a license application if the applicant has not received approval to operate as a money transmitter in the state in which it is organized and the state in which its main office is located. The Commissioner may deny a license application based on the findings of another state.

G. The initial license term shall begin on the day the application is approved. The license shall expire on December 31 of the year in which the license term began, unless the initial license date is between November 1 and December 31, in which instance the initial license term shall run through December 31 of the following year.

SECTION 17. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1567 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A license under this act shall be renewed annually. An annual renewal fee of Three Thousand Dollars ($3,000.00) shall be paid no more than sixty (60) days before the license expiration. The renewal term shall be for a period of one (1) year and shall begin on January 1 of each year after the initial license term and shall expire on December 31 of the year the renewal term begins.

B. A licensee shall submit a renewal report with the renewal fee, in a form and medium prescribed by the Commissioner. The renewal report shall state or contain a description of each material change in information from the original license application which has not been reported to the Commissioner.

C. The Commissioner may, for good cause, grant an extension of the renewal date.

D. The Commissioner shall be authorized and encouraged to utilize the NMLS to process license renewals, provided that such functionality is consistent with this section.

SECTION 18. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1568 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. If a licensee does not continue to meet the qualifications or satisfy the requirements that apply to an applicant for a new money transmission license, the Commissioner may suspend or revoke a license in accordance with the procedures established by this act or other applicable state law for such suspension or revocation.

B. An applicant for a money transmission license must demonstrate that it meets or will meet, and a money transmission licensee shall at all times meet, the requirements in Sections 33, 34, and 35 of this act.

SECTION 19. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1569 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Any person, or group of persons acting in concert, seeking to acquire control of a licensee shall obtain the written approval of the Commissioner prior to acquiring control. An individual shall not be deemed to acquire control of a licensee and shall not be subject to the acquisition of control provisions when that individual becomes a key individual in the ordinary course of business.

B. A person, or group of persons acting in concert, seeking to acquire control of a licensee shall, in cooperation with the licensee:

1. Submit an application in a form and medium prescribed by the Commissioner; and

2. Submit a nonrefundable fee of Four Thousand Dollars ($4,000.00) with the request for approval.

C. Upon request, the Commissioner may permit a licensee or the person, or group of persons acting in concert, to submit some or all of the information required by the Commissioner pursuant to paragraph 1 of subsection B of this section without using the NMLS.

D. The application required by paragraph 1 of subsection B of this section shall include information required by Section 15 of this act for any new key individuals who have not previously completed the requirements of Section 15 of this act for a licensee.

E. 1. When an application for acquisition of control under this section appears to include all the items and address all matters that are required, the application shall be considered complete and the Commissioner shall promptly notify the applicant in a record of the date on which the application was determined to be complete and:

a. the Commissioner shall approve or deny the application within ninety (90) days after the completion date; or

b. the Commissioner may extend the review period upon notice to the applicant.

2. Provided, however, the Commissioner may not approve an application for acquisition of control if the applicant has not received approval regarding the acquisition of control in the state in which it is organized and the state in which its main office is located.

3. If the application is not approved or denied before the ninety-first day after the completion date, and if applicant has received approval regarding the acquisition of control in the state in which it is organized and the state in which its main office is located, the application shall be approved and the person or group of persons acting in concert shall not be prohibited from acquiring control.

F. A determination by the Commissioner that an application is complete and is accepted for processing shall mean only that the application, on its face, appears to include all of the items and address all of the matters that are required. A determination by the Commissioner that an application is complete and is accepted for processing shall not mean an assessment of the substance of the application or of the sufficiency of the information provided.

G. When an application is filed and considered complete under subsection E of this section, the Commissioner shall investigate the financial condition and responsibility, financial and business experience, character, and general fitness of the person, or group of persons acting in concert, seeking to acquire control. The Commissioner may approve an acquisition of control pursuant to this section if the Commissioner finds that all of the following conditions have been fulfilled:

1. The requirements of subsections B and D of this section have been met, as applicable; and

2. The financial condition and responsibility, financial and business experience, competence, character, and general fitness of the person, or group of persons acting in concert, seeking to acquire control, and the competence, experience, character, and general fitness of the key individuals and persons that would be in control of the licensee after the acquisition of control indicate that it is in the interest of the public to permit the person, or group of persons acting in concert, to control the licensee.

H. If an applicant avails itself or is otherwise subject to a multistate licensing process:

1. The Commissioner shall be authorized and encouraged to accept the investigation results of a lead investigative state for the purpose of subsection G of this section if the lead investigative state has sufficient staffing, expertise, and minimum standards; or

2. If Oklahoma is a lead investigative state, the Commissioner shall be authorized and encouraged to investigate the applicant pursuant to subsection G of this section and the timeframes established by agreement through the multistate licensing process.

I. The Commissioner shall issue a formal written notice of the denial of an application to acquire control within thirty (30) days of the decision to deny the application. The Commissioner shall set forth in the notice of denial the specific reasons for the denial of the application. If an applicant whose application is denied by the Commissioner under this section chooses to appeal the denial, the applicant shall file an appeal with the Oklahoma State Banking Board within fifteen (15) calendar days after the date of the written notice of the denial.

J. The requirements of subsections A and B of this section shall not apply to any of the following:

1. A person who acts as a proxy for the sole purpose of voting at a designated meeting of the shareholders or holders of voting shares or voting interests of a licensee or a person in control of a licensee;

2. A person who acquires control of a licensee by devise or descent;

3. A person who acquires control of a licensee as a personal representative, custodian, guardian, conservator, or trustee, or as an officer appointed by a court of competent jurisdiction or by operation of law;

4. A person who is exempt under paragraph 7 of Section 4 of this act;

5. A person who the Commissioner determines is not subject to subsection A of this section based on the public interest;

6. A public offering of securities of a licensee or a person in control of a licensee; or

7. An internal reorganization of a person in control of the licensee where the ultimate person in control of the licensee remains the same.

K. Persons in paragraphs 2, 3, 4, 6, and 7 of subsection J of this section, in cooperation with the licensee, shall notify the Commissioner within fifteen (15) days after the acquisition of control.

L. 1. The requirements of subsections A and B of this section shall not apply to a person who has complied with and received approval to engage in money transmission under this act or was identified as a person in control in a prior application filed with and approved by the Commissioner or by an MSB-accredited state pursuant to a multistate licensing process, provided that:

a. the person has not had a license revoked or suspended or controlled a licensee that has had a license revoked or suspended while the person was in control of the licensee in the previous five (5) years,

b. if the person is a licensee, the person is well managed and has received at least a satisfactory rating for compliance at its most recent examination by an MSB-accredited state, if such a rating was given,

c. the licensee to be acquired is projected to meet the requirements of Sections 33, 34, and 35 of this act after the acquisition of control is completed, and if the person acquiring control is a licensee, that licensee is also projected to meet the requirements of Sections 33, 34, and 35 of this act after the acquisition of control is completed,

d. the licensee to be acquired will not implement any material changes to its business plan as a result of the acquisition of control, and if the person acquiring control is a licensee, that licensee also will not implement any material changes to its business plan as a result of the acquisition of control, and

e. the person provides notice of the acquisition in cooperation with the licensee and attests to subparagraphs a, b, c, and d of paragraph 1 of subsection L of this section in a form and in a medium prescribed by the Commissioner.

2. If the notice is not disapproved within thirty (30) days after the date on which the notice was determined to be complete, the notice shall be deemed approved.

M. Before filing an application for approval to acquire control of a licensee, a person may request in writing a determination from the Commissioner as to whether the person would be considered a person in control of a licensee upon consummation of a proposed transaction. If the Commissioner determines that the person would not be a person in control of a licensee, the proposed person and transaction shall not be subject to the requirements of subsections A and B of this section.

N. If a multistate licensing process includes a determination pursuant to subsection M of this section and an applicant avails itself or is otherwise subject to the multistate licensing process:

1. The Commissioner shall be authorized and encouraged to accept the control determination of a lead investigative state with sufficient staffing, expertise, and minimum standards for the purpose of subsection M of this section; or

2. If Oklahoma is a lead investigative state, the Commissioner shall be authorized and encouraged to investigate the applicant pursuant to subsection M of this section and the timeframes established by agreement through the multistate licensing process.

SECTION 20. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1570 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A licensee adding or replacing any key individual shall:

1. Provide notice in a manner prescribed by the Commissioner within fifteen (15) days after the effective date of the key individual’s appointment; and

2. Provide information as required by Section 15 of this act within forty-five (45) days of the effective date.

B. Within ninety (90) days of the date on which the notice provided pursuant to subsection A of this section was determined to be complete, the Commissioner may issue a notice of disapproval of a key individual if the competence, experience, character, or integrity of the individual would not be in the best interests of the public or the customers of the licensee to permit the individual to be a key individual of such licensee.

C. A notice of disapproval shall contain a statement of the basis for disapproval and shall be sent to the licensee and the disapproved individual. If a licensee chooses to appeal a notice of disapproval, the licensee shall file an appeal with the Oklahoma State Banking Board within fifteen (15) calendar days after the date of the written notice of the disapproval.

D. If the notice provided pursuant to subsection A of this section is not disapproved within one hundred twenty (120) days after the date on which the notice was determined to be complete, the key individual shall be deemed approved, unless the Commissioner has notified the licensee that the review time has been extended.

E. If a multistate licensing process includes a key individual notice review and disapproval process pursuant to this section and the licensee avails itself or is otherwise subject to the multistate licensing process:

1. The Commissioner shall be authorized and encouraged to accept the determination of another state if the investigating state has sufficient staffing, expertise, and minimum standards for the purpose of this section; or

2. If Oklahoma is a lead investigative state, the Commissioner shall be authorized and encouraged to investigate the applicant pursuant to subsection B of this section and the timeframes established by agreement through the multistate licensing process.

SECTION 21. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1571 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Each licensee shall submit a report of condition within forty-five (45) days of the end of the calendar quarter, or within any extended time as the Commissioner may prescribe.

B. The report of condition shall include:

1. Financial information at the licensee level;

2. Nationwide and state-specific money transmission transaction information in every jurisdiction in the United States where the licensee is licensed to engage in money transmission;

3. Permissible investments report;

4. Transaction destination country reporting for money received for transmission, if applicable; and

5. Any other information the Commissioner reasonably requires with respect to the licensee. The Commissioner shall be authorized and encouraged to utilize NMLS for the submission of the report required by this section and is authorized to change or update as necessary the requirements of this section to carry out the purposes of this act and maintain consistency with NMLS reporting.

C. The information required by paragraph 4 of subsection B of this section shall only be included in a report of condition submitted within forty-five (45) days of the end of the fourth calendar quarter.

SECTION 22. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1572 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Each licensee shall, within ninety (90) days after the end of each fiscal year, or within any extended time as the Commissioner may prescribe, file with the Commissioner:

1. An audited financial statement of the licensee for the fiscal year prepared in accordance with United States generally accepted accounting principles; and

2. Any other information as the Commissioner may reasonably require.

B. The audited financial statements shall be prepared by an independent certified public accountant or independent public accountant who is satisfactory to the Commissioner.

C. The audited financial statements shall include or be accompanied by a certificate of opinion of the independent certified public accountant or independent public accountant that is satisfactory in form and content to the Commissioner. If the certificate or opinion is qualified, the Commissioner may order the licensee to take any action as the Commissioner may find necessary to enable the independent or certified public accountant or independent public accountant to remove the qualification.

SECTION 23. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1573 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Each licensee shall submit a report of authorized delegates within forty-five (45) days of the end of the calendar quarter. The Commissioner shall be authorized and encouraged to utilize the NMLS for the submission of the report required by this section provided that such functionality is consistent with the requirements of this section.

B. The authorized delegate report shall include, at a minimum, each authorized delegate's:

1. Company legal name;

2. Taxpayer employer identification number;

3. Principal provider identifier;

4. Physical address;

5. Mailing address;

6. Any business conducted in other states;

7. Any fictitious or trade name;

8. Contact person name, phone number, and email;

9. Start date as licensee's authorized delegate;

10. End date acting as licensee's authorized delegate, if applicable;

11. Any applicable court orders; and

12. Any other information the Commissioner reasonably requires with respect to the authorized delegate.

SECTION 24. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1574 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A licensee shall file a report with the Commissioner within one (1) business day of the licensee becoming aware of the occurrence of any of the following events:

1. The filing of a petition by or against the licensee under the United States Bankruptcy Code, 11 U.S.C., Section 101 et seq., as amended, for bankruptcy or reorganization;

2. The filing of a petition by or against the licensee for receivership, the commencement of any other judicial or administrative proceeding for its dissolution or reorganization, or the making of a general assignment for the benefit of its creditors; or

3. The commencement of a proceeding to revoke or suspend its license in a state or country in which the licensee engages in business or is licensed.

B. A licensee shall file a report with the Commissioner within three (3) business days of the licensee becoming aware of the occurrence of a felony charge or conviction of:

1. The licensee or a key individual;

2. A person in control of the licensee; or

3. An authorized delegate.

SECTION 25. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1575 of Title 6, unless there is created a duplication in numbering, reads as follows:

A licensee and an authorized delegate shall file all reports required by federal currency reporting, record-keeping, and suspicious activity reporting requirements as set forth in the Bank Secrecy Act and other federal and state laws pertaining to money laundering. The timely filing of a complete and accurate report required under this section with the appropriate federal agency shall be deemed compliant with the requirements of this section.

SECTION 26. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1576 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A licensee shall maintain the following records, for determining its compliance with this act, for at least five (5) years:

1. A record of each outstanding money transmission obligation sold;

2. A general ledger posted at least monthly containing all asset, liability, capital, income, and expense accounts;

3. Bank statements and bank reconciliation records;

4. Records of outstanding money transmission obligations;

5. Records of each outstanding money transmission obligation paid within the five-year period;

6. A list of the last-known names and addresses of all of the licensee’s authorized delegates; and

7. Any other records the Commissioner reasonably requires.

B. The items specified in this section may be maintained in any form of record.

C. Records specified in this section may be maintained outside this state if the records are made accessible to the Commissioner within seven (7) business days after a request for the records is received.

D. All records maintained by the licensee as required in this section shall be open to inspection by the Commissioner pursuant to subsection A of Section 7 of this act.

SECTION 27. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1577 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, “remit” means to make direct payments of money to a licensee or its representative authorized to receive money or to deposit money in a bank in an account specified by the licensee.

B. Before a licensee shall be authorized to conduct business through an authorized delegate or allow a person to act as the licensee’s authorized delegate, the licensee shall:

1. Adopt, and update as necessary, written policies and procedures reasonably designed to ensure that the licensee’s authorized delegates comply with applicable state and federal law;

2. Enter into a written contract that complies with subsection D of this section; and

3. Conduct a reasonable risk-based background investigation sufficient for the licensee to determine whether the authorized delegate has complied, and will likely comply, with applicable state and federal law.

C. An authorized delegate shall operate in full compliance with this act.

D. The written contract required by subsection B of this section shall be signed by the licensee and the authorized delegate and, at a minimum, shall:

1. Appoint the person signing the contract as the licensee’s authorized delegate with the authority to conduct money transmission on behalf of the licensee;

2. Set forth the nature and scope of the relationship between the licensee and the authorized delegate and the respective rights and responsibilities of both parties;

3. Require the authorized delegate to agree to fully comply with all applicable state and federal laws, rules, and regulations pertaining to money transmission, including this act and any regulations promulgated under this act and relevant provisions of the Bank Secrecy Act and the USA PATRIOT Act;

4. Require the authorized delegate to remit and handle money and monetary value in accordance with the terms of the contract between the licensee and the authorized delegate;

5. Impose a trust on money and monetary value net of fees received for money transmission for the benefit of the licensee;

6. Require the authorized delegate to prepare and maintain records as required by this act and any regulations promulgated under this act or as reasonably requested by the Commissioner;

7. Acknowledge that the authorized delegate consents to examination or investigation by the Commissioner;

8. State that the licensee is subject to regulation by the Commissioner and that, as part of that regulation, the Commissioner may suspend or revoke an authorized delegate designation or require the licensee to terminate an authorized delegate designation; and

9. Acknowledge receipt of the written policies and procedures required under paragraph 1 of subsection B of this section.

E. If the licensee’s license is suspended, revoked, surrendered, or expired, the licensee shall, within five (5) business days, provide documentation to the Commissioner that the licensee has notified all applicable authorized delegates of the licensee whose names are in a record filed with the Commissioner of the suspension, revocation, surrender, or expiration of a license. Upon suspension, revocation, surrender, or expiration of a license, applicable authorized delegates shall immediately cease to provide money transmission as an authorized delegate of the licensee.

F. An authorized delegate of a licensee holds in trust for the benefit of the licensee all money net of fees received from money transmission. If any authorized delegate commingles any funds received from money transmission with any other funds or property owned or controlled by the authorized delegate, all commingled funds and other property shall be considered held in trust in favor of the licensee in an amount equal to the amount of money net of fees received from money transmission.

G. An authorized delegate may not use a subdelegate to conduct money transmission on behalf of a licensee.

SECTION 28. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1578 of Title 6, unless there is created a duplication in numbering, reads as follows:

A person shall not engage in the business of money transmission on behalf of a person not licensed under this act or not exempt pursuant to Section 4 of this act. A person who engages in such activity and provides money transmissions to the same extent as if the person were a licensee shall be jointly and severally liable with the unlicensed or nonexempt person. Any business for which a license is required under this act that is conducted by an authorized delegate outside the scope of authority conferred in the contract between the authorized delegate and the licensee shall be deemed an unlicensed activity.

SECTION 29. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1579 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. Every licensee shall forward all money received for transmission in accordance with the terms of the agreement between the licensee and the sender unless the licensee has a reasonable belief or a reasonable basis to believe that the sender may be a victim of fraud or that a crime or violation of law, rule, or regulation has occurred, is occurring, or may occur.

B. If a licensee fails to forward money received for transmission in accordance with this section, the licensee shall respond to inquiries by the sender with the reason for the failure unless providing a response would violate a state or federal law, rule, or regulation.

SECTION 30. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1580 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. This section shall not apply to:

1. Money received for transmission subject to the federal Remittance Rule, 12 C.F.R., Part 1005, Subpart B, as amended; or

2. Money received for transmission pursuant to a written agreement between the licensee and payee to process payments for goods or services provided by the payee.

B. Every licensee shall issue a refund to the sender within ten (10) days of receipt of the sender's written request for a refund of any and all money received for transmission unless any of the following occurs:

1. The money has been forwarded within ten (10) days of the date on which the money was received for transmission;

2. Instructions have been given committing an equivalent amount of money to the person designated by the sender within ten (10) days of the date on which the money was received for transmission;

3. The agreement between the licensee and the sender instructs the licensee to forward the money at a time that is beyond ten (10) days of the date on which the money was received for transmission. If funds have not yet been forwarded in accordance with the terms of the agreement between the licensee and the sender, the licensee shall issue a refund in accordance with the provisions of this section;

4. The refund is requested for a transaction that the licensee has not completed based on a reasonable belief or a reasonable basis to believe that a crime or violation of law, rule, or regulation has occurred, is occurring, or may occur; or

5. The refund request does not enable the licensee to:

a. identify the sender's name and address or telephone number, or

b. identify the particular transaction to be refunded, in the event the sender has multiple transactions outstanding.

SECTION 31. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1581 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. This section shall not apply to:

1. Money received for transmission subject to the federal Remittance Rule, 12 C.F.R., Part 1005, Subpart B, as amended;

2. Money received for transmission that is not primarily for personal, family, or household purposes;

3. Money received for transmission pursuant to a written agreement between the licensee and payee to process payments for goods or services provided by the payee; or

4. Payroll processing services.

B. For purposes of this section "receipt" means a paper receipt, electronic record, or other written confirmation. For a transaction conducted in person, the receipt may be provided electronically if the sender requests or agrees to receive an electronic receipt. For a transaction conducted electronically or by phone, a receipt may be provided electronically. All electronic receipts shall be provided in a retainable form.

C. 1. Every licensee or its authorized delegate shall provide the sender a receipt for money received for transmission. The receipt shall contain the following information, as applicable:

a. the name of the sender,

b. the name of the designated recipient,

c. the date of the transaction,

d. the unique transaction or identification number,

e. the name of the licensee, NMLS Unique ID, the licensee's business address, and the licensee's customer service telephone number,

f. the amount of the transaction in United States dollars,

g. any fee charged by the licensee to the sender for the transaction, and

h. any taxes collected by the licensee from the sender for the transaction.

2. The receipt required by this section shall be in English and in the language principally used by the licensee or authorized delegate to advertise, solicit, or negotiate, either orally or in writing, for a transaction conducted in person, electronically, or by phone, if other than English.

3. Nothing in this section shall affect or eliminate the disclosures required to be provided under Section 1520.1 of Title 6 of the Oklahoma Statutes in connection with digital asset kiosk transactions.

SECTION 32. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1582 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A licensee that provides payroll processing services shall:

1. Issue reports to clients detailing client payroll obligations in advance of the payroll funds being deducted from an account; and

2. Make worker paystubs or equivalent statements available to workers.

B. This section shall not apply to a licensee providing payroll processing services where the licensee's client designates the intended recipients to the licensee and is responsible for providing the information required by paragraph 2 of subsection A of this section.

SECTION 33. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1583 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A licensee under this act shall maintain at all times a tangible net worth of the greater of One Hundred Thousand Dollars ($100,000.00) or three percent (3%) of total assets for the first One Hundred Million Dollars ($100,000,000.00), two percent (2%) of additional assets for One Hundred Million Dollars ($100,000,000.00) to One Billion Dollars ($1,000,000,000.00), and one-half of a percent (1/2%) of additional assets for over One Billion Dollars ($1,000,000,000.00).

B. Tangible net worth shall be demonstrated at initial application by the applicant’s most recent audited or unaudited financial statements pursuant to paragraph 6 of subsection B of Section 14 of this act.

C. Notwithstanding the foregoing provisions of this section, the Commissioner shall have the authority, for good cause shown, to exempt, in part or in whole, any applicant or licensee from the requirements of this section.

SECTION 34. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1584 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. An applicant for a money transmission license shall provide, and a licensee at all times shall maintain, security consisting of a surety bond in a form satisfactory to the Commissioner or, with the Commissioner’s approval, a deposit instead of a bond in accordance with this section.

B. The amount of the required security shall be no less than Five Hundred Thousand Dollars ($500,000.00) for applicants and licensees that operate digital asset kiosks or provide services related to digital assets.

C. If an applicant or licensee does not operate digital asset kiosks or provide services related to digital assets, the amount of the required security shall be:

1. The greater of Two Hundred Thousand Dollars ($200,000.00) or an amount equal to one hundred percent (100%) of the licensee’s average daily money transmission liability in this state calculated for the most recently completed three-month period, up to a maximum of Five Hundred Thousand Dollars ($500,000.00); or

2. In the event that the licensee’s tangible net worth exceeds ten percent (10%) of total assets, the licensee shall maintain a surety bond of Two Hundred Thousand Dollars ($200,000.00).

D. A licensee may exceed the maximum required bond amount pursuant to paragraph 5 of subsection A of Section 36 of this act.

E. The Commissioner may increase the amount of security required to a maximum of One Million Dollars ($1,000,000.00) if the financial condition of a licensee so requires, as evidenced by reduction of net worth, financial losses, or other relevant criteria.

SECTION 35. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1585 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A licensee shall maintain at all times permissible investments that have a market value, computed in accordance with United States generally accepted accounting principles, of not less than the aggregate amount of all its outstanding money transmission obligations.

B. Except for permissible investments enumerated in subsection A of Section 36 of this act, the Commissioner, with respect to any licensee, may by rule or order limit the extent to which a specific investment maintained by a licensee within a class of permissible investments may be considered a permissible investment, if the specific investment represents undue risk to customers, not reflected in the market value of investments.

C. Permissible investments, even if commingled with other assets of the licensee, shall be held in trust for the benefit of the purchasers and holders of the licensee's outstanding money transmission obligations in the event of insolvency, the filing of a petition by or against the licensee for bankruptcy or reorganization under the United States Bankruptcy Code, 11 U.S.C., Section 101 et seq., as amended, the filing of a petition by or against the licensee for receivership, the commencement of any other judicial or administrative proceeding for its dissolution or reorganization, or in the event of an action by a creditor against the licensee who is not a beneficiary of the trust. No permissible investments impressed with a trust pursuant to this section shall be subject to attachment, levy of execution, or sequestration by order of any court, except for a beneficiary of this statutory trust.

D. Upon the establishment of a trust in accordance with subsection C of this section, or when any funds are drawn on a letter of credit pursuant to paragraph 4 of subsection A of Section 36 of this act, the Commissioner shall notify the applicable regulator of each state in which the licensee is licensed to engage in money transmission, if any, of the establishment of the trust or the funds drawn on the letter of credit, as applicable. Notice shall be deemed satisfied if performed pursuant to a multistate agreement or through the NMLS. Funds drawn on a letter of credit, and any other permissible investments held in trust for the benefit of the purchasers and holders of the licensee’s outstanding money transmission obligations, shall be deemed held in trust for the benefit of such purchasers and holders on a pro rata and equitable basis in accordance with laws pursuant to which permissible investments are required to be held in this state, and other states, as applicable. Any statutory trust established hereunder shall be terminated upon extinguishment of all the licensee’s outstanding money transmission obligations.

E. The Commissioner, by rule, policy, or order, may allow other types of investments that he or she determines are of sufficient liquidity and quality to be a permissible investment. The Commissioner shall be authorized to participate in efforts with other state regulators to determine what other types of investments are of sufficient liquidity and quality to be a permissible investment.

SECTION 36. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1586 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. The following investments are permissible under Section 35 of this act:

1. Cash including demand deposits, savings deposits, and funds in such accounts held for the benefit of the licensee’s customers in a federally insured depository financial institution, and cash equivalents including automated clearing house (ACH) items in transit to the licensee and ACH items or international wires in transit to a payee, cash in transit via armored car, cash in smart safes, cash in licensee-owned locations, debit-card- or credit-card-funded transmission receivables owed by any bank, or money market mutual funds rated AAA by S&P Global Ratings, or the equivalent from any eligible rating service;

2. Certificates of deposit or senior debt obligations of an insured depository institution, as defined in Section 3 of the Federal Deposit Insurance Act, 12 U.S.C., Section 1813, as amended, or an insured credit union, as defined under the Federal Credit Union Act, 12 U.S.C., Section 1752, as amended;

3. An obligation of the United States or a commission, agency, or instrumentality thereof; an obligation that is guaranteed fully as to principal and interest by the United States; or an obligation of a state or a governmental subdivision, agency, or instrumentality thereof;

4. The full drawable amount of an irrevocable standby letter of credit for which the stated beneficiary is the Commissioner and that stipulates that the beneficiary need only draw a sight draft under the letter of credit and present it to obtain funds up to the letter of credit amount within seven (7) days of presentation of the items required by subparagraph c of this paragraph.

a. The letter of credit shall:

(1) be issued by a federally insured depository financial institution, a foreign bank that is authorized under federal law to maintain a federal agency or federal branch office in a state or states, or a foreign bank that is authorized under state law to maintain a branch in a state and the issuer:

(a) bears an eligible rating or whose parent corporation bears an eligible rating, and

(b) is regulated, supervised, and examined by federal or state authorities having regulatory authority over banks, credit unions, and trust companies,

(2) be irrevocable, unconditional, and indicate that it is not subject to any condition or qualifications outside of the letter of credit,

(3) not contain reference to any other agreements, documents, or entities, or otherwise provide for any security interest in the licensee, and

(4) contain an issue date and expiration date, and expressly provide for automatic extension, without a written amendment, for an additional period of one (1) year from the present or each future expiration date, unless the issuer of the

letter of credit notifies the Commissioner in writing by certified or registered mail or courier mail, or other receipted means, at least sixty (60) days prior to any expiration date that the irrevocable letter of credit will not be extended.

b. In the event of any notice of expiration or non-extension of a letter of credit issued under division (4) of subparagraph a of this paragraph, the licensee shall be required to demonstrate to the satisfaction of the Commissioner fifteen (15) days prior to expiration that the licensee maintains and will maintain permissible investments in accordance with this subsection upon the expiration of the letter of credit. If the licensee is not able to do so, the Commissioner may draw on the letter of credit in an amount up to the amount necessary to meet the licensee's requirements to maintain permissible investments in accordance with subsection A of Section 35 of this act. Any such draw shall be offset against the licensee's outstanding money transmission obligations. The drawn funds shall be held in trust by the Commissioner or the Commissioner's designated agent, to the extent authorized by law, for the benefit of the purchasers and holders of the licensee's outstanding money transmission obligations.

c. The letter of credit shall provide that the issuer of the letter of credit will honor, at sight, a presentation made by the beneficiary to the issuer of the following documents on or prior to the expiration date of the letter of credit:

(1) the original letter of credit including any amendments, and

(2) a written statement from the beneficiary stating that any of the following events have occurred:

(a) the filing of a petition by or against the licensee under the United States Bankruptcy Code, 11 U.S.C., Section 101 et seq., as amended, for bankruptcy or reorganization,

(b) the filing of a petition by or against the licensee for receivership, or the commencement of any other judicial or administrative proceeding for its dissolution or reorganization,

(c) the seizure of assets of a licensee by the Commissioner pursuant to an emergency order issued in accordance with applicable law, on the basis of an action, violation, or condition that has caused or is likely to cause the insolvency of the licensee, or

(d) the beneficiary has received notice of expiration or nonextension of a letter of credit and the licensee has failed to demonstrate to the satisfaction of the beneficiary that the licensee will maintain permissible investments in accordance with subsection A of Section 35 of this act upon the expiration or nonextension of the letter of credit.

d. The Commissioner may designate an agent to serve on the Commissioner’s behalf as beneficiary to a letter of credit so long as the agent and letter of credit meet requirements established by the Commissioner. The Commissioner’s agent may serve as agent for multiple licensing authorities for a single irrevocable letter of credit if the proceeds of the drawable amount for the purposes of this paragraph are assigned to the Commissioner.

e. The Commissioner shall be authorized and encouraged to participate in multistate processes designed to facilitate the issuance and administration of letters of credit, including, but not limited to, services provided by the NMLS and State Regulatory Registry, LLC;

5. One hundred percent (100%) of the surety bond or deposit provided for under Section 34 of this act that exceeds the average daily money transmission liability in this state; and

6. Stablecoin, to the extent the outstanding transmission obligations received by the licensee are in the same kind of stablecoin. For purposes of this subsection, stablecoin shall be required to be held, stored, or kept in custody of the licensee directly or by a third-party custodian that meets the qualifications prescribed by the Commissioner.

B. Unless permitted by the Commissioner by rule, policy, or order to exceed the limit as set forth herein, the following investments shall be permissible under Section 35 of this act to the extent specified:

1. Receivables that are payable to a licensee from its authorized delegates in the ordinary course of business that are less than seven (7) days old and up to fifty percent (50%) of the aggregate value of the licensee's total permissible investments;

2. Of the receivables permissible under paragraph 1 of subsection B of this section, receivables that are payable to a licensee from a single authorized delegate in the ordinary course of business may not exceed ten percent (10%) of the aggregate value of the licensee's total permissible investments;

3. The following investments shall be permissible up to twenty percent (20%) per category and combined up to fifty percent (50%) of the aggregate value of the licensee's total permissible investments:

a. a short-term investment, up to six (6) months, bearing an eligible rating,

b. commercial paper bearing an eligible rating,

c. a bill, note, bond, or debenture bearing an eligible rating,

d. United States tri-party repurchase agreements collateralized at one hundred percent (100%) or more with United States government or agency securities, municipal bonds, or other securities bearing an eligible rating,

e. money market mutual funds rated less than AAA but equal to or higher than A- by S&P Global Ratings, or the equivalent from any other eligible rating service, and

f. a mutual fund or other investment fund composed solely and exclusively of one or more permissible investments listed in paragraphs 1 through 3 of subsection A of this section; and

4. Cash, including demand deposits, savings deposits, and funds in such accounts held for the benefit of the licensee's customers, at foreign depository institutions are permissible up to ten percent (10%) of the aggregate value of the licensee's total permissible investments if the licensee has received a satisfactory rating in its most recent examination and the foreign depository institution:

a. has an eligible rating,

b. is registered under the Foreign Account Tax Compliance Act,

c. is not located in any country subject to sanctions from the Office of Foreign Assets Control, and

d. is not located in a high-risk or noncooperative jurisdiction as designated by the Financial Action Task Force.

SECTION 37. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1587 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. The Commissioner may suspend or revoke a license or order a licensee to revoke the designation of an authorized delegate if:

1. The licensee violates this act or a rule adopted or an order issued under this act;

2. The licensee does not cooperate with an examination or investigation by the Commissioner;

3. The licensee engages in fraud, intentional misrepresentation, or gross negligence;

4. An authorized delegate is convicted of a violation of a state or federal anti-money-laundering statute or violates a rule adopted or an order issued under this act if the violation was a result of the licensee's willful misconduct or willful blindness;

5. The competence, experience, character, or general fitness of the licensee, authorized delegate, person in control of a licensee, key individual, or responsible person of the authorized delegate indicates that it is not in the public's best interest to permit the licensee or authorized delegate to provide money transmissions;

6. The licensee engages in an unsafe or unsound practice;

7. The licensee is insolvent, suspends payment of its obligations, or makes a general assignment for the benefit of its creditors;

8. The licensee does not remove an authorized delegate after the Commissioner issues and serves upon the licensee a final order, including a finding that the authorized delegate has violated this act; or

9. The licensee's license has been suspended or revoked in another state.

B. In determining whether a licensee is engaging in an unsafe or unsound practice, the Commissioner may consider the size and condition of the licensee's money transmission obligations, the magnitude of the loss, the gravity of the violation of this act, and the previous conduct of the person involved.

SECTION 38. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1588 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. The Commissioner may issue an order suspending or revoking the designation of an authorized delegate if the Commissioner finds that:

1. The authorized delegate violated this act or a rule adopted or an order issued under this act;

2. The authorized delegate did not cooperate with an examination or investigation by the Commissioner;

3. The authorized delegate engaged in fraud, intentional misrepresentation, or gross negligence;

4. The authorized delegate is convicted of a violation of a state or federal anti-money-laundering statute;

5. The competence, experience, character, or general fitness of the authorized delegate or a person in control of the authorized delegate indicates that it is not in the public's best interest to permit the authorized delegate to provide money transmissions; or

6. The authorized delegate is engaging in an unsafe or unsound practice.

B. In determining whether an authorized delegate is engaging in an unsafe or unsound practice, the Commissioner may consider the size and condition of the authorized delegate's provision of money transmission obligations, the magnitude of the loss, the gravity of the violation of this act or a rule adopted or order issued under this act, and the previous conduct of the authorized delegate.

C. An authorized delegate may apply for relief from a suspension or revocation of designation as an authorized delegate according to procedures prescribed by the Commissioner.

SECTION 39. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1589 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. If the Commissioner determines that any conduct is likely a violation of this act or of a rule adopted or an order issued under this act by a licensee or authorized delegate and is likely to cause immediate and irreparable harm to the licensee, its customers, or the public or cause insolvency or significant dissipation of assets of the licensee, the Commissioner may issue an order requiring the licensee or authorized delegate to cease and desist the conduct. The order shall become effective upon service of the order on the licensee or authorized delegate.

B. The Commissioner may issue an order against a licensee to cease and desist from providing money transmission through an authorized delegate that is the subject of a separate order by the Commissioner.

C. An order to cease and desist remains effective and enforceable pending the completion of an administrative proceeding. An order to cease and desist shall become permanent unless the licensee or authorized delegate files an appeal with the Oklahoma

State Banking Board within fifteen (15) calendar days of the date of the order.

SECTION 40. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1590 of Title 6, unless there is created a duplication in numbering, reads as follows:

The Commissioner may enter into a consent order at any time with a person to resolve a matter arising under this act or a rule adopted or order issued under this act. A consent order shall be signed by the person to whom it is issued or by the person's authorized representative and shall indicate agreement with the terms contained in the order. A consent order may provide that the consent order does not constitute an admission by the person that he or she has violated this act or a rule adopted or an order issued under this act. A consent order shall be a final order and may not be appealed.

SECTION 41. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1591 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. A person who intentionally makes a false statement, misrepresentation, or false certification in a record filed or required to be maintained under this act or that intentionally makes a false entry or omits a material entry in such a record shall, upon conviction, be guilty of a Class D1 felony offense punishable by imprisonment as provided for in subsections B through F of Section 20N of Title 21 of the Oklahoma Statutes, or by a fine of Ten Thousand Dollars ($10,000.00), or by both such fine and imprisonment.

B. A person who knowingly engages in an activity for which a license is required under this act without being licensed under this act shall, upon conviction, be guilty of a Class D1 felony offense punishable by imprisonment as provided for in subsections B through F of Section 20N of Title 21 of the Oklahoma Statutes, or by a fine of Ten Thousand Dollars ($10,000.00), or by both such fine and imprisonment.

SECTION 42. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1592 of Title 6, unless there is created a duplication in numbering, reads as follows:

The Commissioner may assess a fine against a person who violates this act or a rule adopted or an order issued under this act in an amount not to exceed Five Thousand Dollars ($5,000.00) per violation for each day a violation is outstanding, plus any costs or expenses for the investigation and prosecution of the matter, including reasonable attorney fees.

SECTION 43. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1593 of Title 6, unless there is created a duplication in numbering, reads as follows:

A. If the Commissioner has reason to believe that a person has violated or is violating Section 12 of this act, the Commissioner may issue an order requiring that the person cease and desist from the violation of Section 12 of this act.

B. In an emergency, the Commissioner may petition the District Court of Oklahoma County for the issuance of an ex parte temporary restraining order pursuant to the rules of civil procedure.

C. An order to cease and desist shall:

1. Become effective upon service of it upon the person;

2. Remain effective and enforceable pending the completion of an administrative proceeding; and

3. Become permanent unless the person files an appeal with the Oklahoma State Banking Board within fifteen (15) calendar days of the date of the order.

SECTION 44. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1594 of Title 6, unless there is created a duplication in numbering, reads as follows:

A person providing payroll processing services in this state without a license shall not be considered in violation of Section 12 of this act if the person applies for a license within six (6) months of the enactment of this act. The Commissioner may extend the transition period in conjunction with the extension of an application period.

SECTION 45. AMENDATORY Section 2, Chapter 363, O.S.L. 2025 (6 O.S. Supp. 2025, Section 1520.1), is amended to read as follows:

Section 1520.1. A. A digital asset kiosk operator shall not engage in digital asset kiosk transactions or hold itself out as being able to engage in digital asset kiosk transactions with or on behalf of another person unless the digital asset kiosk operator is licensed in this state as a money transmitter pursuant to the ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma Money Transmission Modernization Act.

1. Any digital asset kiosk operator acting in violation of this subsection shall, upon conviction, be guilty of a misdemeanor, punishable by a fine not less than Six Hundred Dollars ($600.00) nor more than Two Thousand Dollars ($2,000.00) per violation, or by imprisonment in the county jail for not less than thirty (30) days nor more than one (1) year, or by both such fine and imprisonment.

2. Any digital asset kiosk which is ~~used~~ operated by a digital asset kiosk operator in violation of this subsection may be seized at the direction of the Attorney General by any commissioned peace officer in this state. The procedures set forth in Section 1738 of Title 21 of the Oklahoma Statutes shall apply to any digital asset kiosk seized under this subsection.

3. The Attorney General is authorized to promulgate rules to effectuate the provisions of this subsection.

4. Any customer who has been fraudulently induced to engage in digital asset transactions using a digital asset kiosk operated in violation of this subsection may file a civil suit against the digital asset kiosk operator for the amount of any losses sustained by the customer related to such digital asset transactions.

B. A digital asset kiosk operator shall not locate or relocate, or allow a third party to locate or relocate, a digital asset kiosk in this state unless the digital asset kiosk operator has provided notice of intent to locate or relocate a digital asset kiosk to the Oklahoma State Banking Department no less than ten (10) days prior to its activation. The notice to the Banking Department shall contain the same information for the digital asset kiosk to be located or relocated as is required in the quarterly location report pursuant to subsection C of this section.

C. Each digital asset kiosk operator shall submit a quarterly report of the location of each digital asset kiosk located within this state within forty-five (45) days of the end of the calendar quarter. The location report shall include:

1. The company's legal name;

2. Any fictitious or trade name;

3. The physical address;

4. The start date of operation of the digital asset kiosk at each location; and

5. The end date of operation of the digital asset kiosk at each location, if applicable.

D. A digital asset kiosk operator shall disclose in a clear, conspicuous, and easily readable manner in the chosen language of the customer all relevant terms and conditions generally associated with the products, services, and activities of the digital asset kiosk operator and digital assets.

1. The digital asset kiosk operator shall receive acknowledgement of receipt of all disclosures required under this ~~act~~ section through confirmation of consent.

2. The disclosures under this act shall include:

a. a warning, written prominently and in bold type, and provided separately from the other required disclosures ~~below~~, stating: "WARNING: LOSSES DUE TO FRAUDULENT OR ACCIDENTAL TRANSACTIONS ARE NOT RECOVERABLE AND TRANSACTIONS IN DIGITAL ASSETS ARE IRREVERSIBLE. DIGITAL ASSET TRANSACTIONS MAY BE USED TO STEAL YOUR MONEY BY CRIMINALS IMPERSONATING THE GOVERNMENT, ORGANIZATIONS, OR YOUR LOVED ONES. THEY CAN THREATEN JAIL TIME, SAY YOUR IDENTITY HAS BEEN STOLEN, ALLEGE YOUR COMPUTER HAS BEEN HACKED, INSIST YOU WITHDRAW MONEY FROM YOUR BANK ACCOUNT TO PURCHASE DIGITAL ASSETS, OR A NUMBER OF OTHER SCAMS. IF YOU BELIEVE YOU ARE BEING SCAMMED, CALL YOUR LOCAL LAW ENFORCEMENT AGENCY.",

b. the material risks associated with digital assets and digital asset transactions including, but not limited to:

(1) a warning that once completed, the transaction may not be reversed,

(2) the digital asset kiosk operator’s liability for unauthorized digital asset transactions,

(3) the digital asset customer’s liability for unauthorized currency transactions,

(4) that digital assets are not legal tender, backed or insured by the government, and accounts and value balances are not subject to Federal Deposit Insurance Corporation, National Credit Union Administration, or Securities Investor Protection Corporation protections,

(5) that some digital asset transactions are deemed to be made when recorded on a public ledger, which may not be the date or time when the person initiates the transaction,

(6) that a digital asset’s value may be derived from market participants’ continued willingness to exchange currency for digital assets, which may result in the permanent and total loss of a particular digital asset’s value if the market for digital assets disappears,

(7) that a person who accepts a digital asset as payment today is not required to accept and might not accept a digital asset in the future,

(8) that the volatility and unpredictability of the price of digital assets relative to currency may result in a significant loss over a short period of time,

(9) that the nature of digital assets means that any technological difficulties experienced by digital asset kiosk operators may prevent access to or use of a person’s digital assets, and

(10) that any bond maintained by the digital asset kiosk operator for the benefit of a person may not cover all losses a person incurs,

c. the amount of the transaction denominated in United States dollars as well as the applicable digital assets,

d. any fees or expenses charged by the digital asset kiosk operator,

e. any applicable exchange rates,

f. a daily digital asset transaction limit of no more than Two Thousand Dollars ($2,000.00) for new customers,

g. notice of a change in the digital asset kiosk operator's rules or policies,

h. the name, address, and telephone number of the owner of the digital asset kiosk and the days, times, and means by which a customer can contact the owner for customer assistance, displayed on or at the location of the digital asset kiosk, or on the first screen of the digital asset kiosk,

i. under what circumstances the digital asset kiosk operator, without a court or government order, discloses a person's account information to third parties, and

j. other disclosures that are customarily given in connection with a digital asset transaction.

E. Upon each transaction's completion, the digital asset kiosk operator shall provide the customer with a receipt, in paper where possible, in the language chosen by the customer, containing the following information:

1. The digital asset kiosk operator's name and contact information, including a telephone number to answer questions and register complaints;

2. The type, value, date, and precise time of the transaction, transaction hash, and each applicable digital asset address;

3. All fees charged;

4. The exchange rate of the digital asset to United States dollars;

5. A statement of the digital asset kiosk operator’s liability for nondelivery or delayed delivery; and

6. A statement of the digital asset kiosk operator’s refund policy.

F. In the event that a paper receipt is not possible, the digital asset kiosk operator shall post in a conspicuous manner information by which a customer who has engaged in a digital asset kiosk transaction can contact the digital asset kiosk operator to obtain a copy of the receipt.

G. All digital asset kiosk operators shall use blockchain technology to assist in the prevention of sending purchased digital assets from a digital asset kiosk operator to a digital asset wallet known to be affiliated with fraudulent activity at the time of a transaction. The Banking Department may request evidence from any digital asset kiosk operator of the current use of blockchain analytics.

1. All digital asset kiosk operators shall take reasonable steps to detect and prevent fraud, including establishing and maintaining a written anti-fraud policy including, but not limited to:

a. the identification and assessment of fraud-related risk areas,

b. procedures and controls to protect against identified risks,

c. allocation of responsibility for monitoring risks, and

d. procedures for the periodic evaluation and revision of the anti-fraud procedures, controls, and monitoring mechanisms.

2. Each digital asset kiosk operator shall designate and employ a compliance officer with the following requirements:

a. the individual shall be qualified to coordinate and monitor compliance with this ~~act~~ section and all other applicable federal and state laws, rules, and regulations,

b. the individual shall be employed full-time by the digital asset kiosk operator,

c. the designated compliance officer ~~cannot~~ shall not be an individual who owns more than twenty percent (20%) of the digital asset kiosk by whom the individual is employed, and

d. the individual shall be responsible for all compliance responsibilities required under federal and state laws, rules, and regulations ~~shall be~~ and ensure such responsibilities are completed by full-time employees of the digital asset kiosk operator.

3. A digital asset kiosk operator shall issue a refund to a new customer for the full amount of all fraudulent transactions, including all transaction fees and charges that were charged to the customer pursuant to subsection I of this section, made while a new customer. To receive a refund under this section, a new customer shall have been fraudulently induced to engage in the digital asset transactions and shall contact the digital asset kiosk operator and the Office of the Attorney General to report the fraudulent nature of the transactions within fourteen (14) days of the last fraudulent transaction to occur while the customer was a new customer.

4. A digital asset kiosk operator shall issue a refund to an existing customer who qualifies under this paragraph for the full amount of all transaction fees and charges that were charged to the customer pursuant to subsection I of this section upon the request of the customer. To receive a refund under this paragraph, a customer shall have been fraudulently induced to engage in a digital asset ~~transactions~~ transaction and shall contact the digital asset kiosk operator and the Office of the Attorney General to report the fraudulent nature of the transaction within fourteen (14) days of the transaction.

H. A digital asset kiosk operator shall not accept transactions of more than Two Thousand Dollars ($2,000.00), or the equivalent in digital assets, in a single day in connection with digital asset kiosk transactions with a new customer in this state by one or more digital asset kiosks.

I. The aggregate fees and charges directly or indirectly charged to a customer related to a single transaction or series of related transactions involving digital assets effected through a digital asset kiosk in this state, including any difference between the price charged to a customer to buy, sell, exchange, swap, or convert digital assets and the prevailing market value of such digital assets at the time of such transaction or transactions, shall not exceed fifteen percent (15%) of the United States dollar equivalent of the digital assets involved in the transaction or transactions.

J. All digital asset kiosk operators performing business in this state shall provide live customer service at a minimum Monday through Friday from 8:00 a.m. CST to 10:00 p.m. CST. The customer service toll-free number shall be displayed on the digital asset kiosk or the digital asset kiosk screens.

K. The Banking Department is authorized to promulgate rules necessary to implement the provisions of this ~~act~~ section.

SECTION 46. AMENDATORY Section 14, Chapter 366, O.S.L. 2024 (21 O.S. Supp. 2025, Section 20N), is amended to read as follows:

Section 20N. A. ~~Upon the effective date of this act~~ Beginning July 1, 2026, Class D1 shall include the following criminal offenses:

1. Public warehouse and/or commodity stock fraud, as provided for in Section 9-34 of Title 2 of the Oklahoma Statutes;

2. False issuance of warehouse receipt, as provided for in Section 9-35 of Title 2 of the Oklahoma Statutes;

3. Misrepresentation of charter, as provided for in Section 9-36 of Title 2 of the Oklahoma Statutes;

4. Tampering with anhydrous equipment, as provided for in subsection A of Section 11-10 of Title 2 of the Oklahoma Statutes;

5. Willfully burn forest, grass, crops, or woodlands, as provided for in Section 16-25 of Title 2 of the Oklahoma Statutes;

6. Willful and unlawful burning of forest, grass, croplands, rangeland, or other wild lands by owner, as provided for in Section 16-28.1 of Title 2 of the Oklahoma Statutes;

7. Possession of incendiary device with the intent to burn, as provided for in Section 16-34 of Title 2 of the Oklahoma Statutes;

8. Operate aircraft not registered with the Federal Aviation Administration Office of Aircraft Registry or foreign country, as provided for in subsection A of Section 258 of Title 3 of the Oklahoma Statutes;

9. Supply false information in regard to aircraft ownership, as provided for in subsection B of Section 258 of Title 3 of the Oklahoma Statutes;

10. Concealing identity of aircraft, as provided for in subsection C of Section 258 of Title 3 of the Oklahoma Statutes;

11. Destruction of registration or serial number on aircraft, as provided for in subsection A of Section 259 of Title 3 of the Oklahoma Statutes;

12. Destruction of registration or serial number on aircraft with intent to conceal, as provided for in subsection B of Section 259 of Title 3 of the Oklahoma Statutes;

13. Sell, purchase, or possess aircraft with removed or falsified identification number with intent to misrepresent the identity of aircraft, as provided for in subsection D of Section 259 of Title 3 of the Oklahoma Statutes;

14. Operating aircraft under the influence of alcohol, second or subsequent offense within ten (10) years, as provided for in subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

15. Operating aircraft under the influence of intoxicant, second or subsequent offense ~~with~~ within ten (10) years, as provided for in subsection A of Section 301 of Title 3 of the Oklahoma Statutes;

16. Unauthorized use of aircraft, as provided for in subsection A of Section 321 of Title 3 of the Oklahoma Statutes;

17. Charge fee for horse race without a license, as provided for in Section 205 of Title 3A of the Oklahoma Statutes;

18. Pari-mutuel wagering without a license, as provided for in subsection A of Section 208.4 of Title 3A of the Oklahoma Statutes;

19. Entering racehorse under false name, as provided for in subsection A of Section 208.6 of Title 3A of the Oklahoma Statutes;

20. Entering racehorse without name being registered, as provided for in subsection B of Section 208.6 of Title 3A of the Oklahoma Statutes;

21. Using racing stimulating devices, as provided for in Section 208.7 of Title 3A of the Oklahoma Statutes;

22. Racetrack bribery or ticket falsification, as provided for in Section 208.8 of Title 3A of the Oklahoma Statutes;

23. Unauthorized wagering on horse racing, as provided for in Section 208.9 of Title 3A of the Oklahoma Statutes;

24. Falsification of information on racehorse, as provided for in Section 208.10 of Title 3A of the Oklahoma Statutes;

25. Administer a drug or medication without authorization to horse prior to racing, as provided for in subsection C of Section 208.11 of Title 3A of the Oklahoma Statutes;

26. Violation of horse racing drug provisions, as provided for in subsection D of Section 208.11 of Title 3A of the Oklahoma Statutes;

27. Forging and/or counterfeiting state lottery ticket, as provided for in subsection A of Section 727 of Title 3A of the Oklahoma Statutes;

28. Influence lottery win by fraud, as provided for in subsection B of Section 727 of Title 3A of the Oklahoma Statutes;

29. Own dog that attacks and kills a person, as provided for in subsection B of Section 42.4 of Title 4 of the Oklahoma Statutes;

30. Release dog on law enforcement officer, as provided for in subsection C of Section 42.4 of Title 4 of the Oklahoma Statutes;

31. Pledging assets of bank as collateral, as provided in Section 809 of Title 6 of the Oklahoma Statutes;

32. Unlawful compensation of bank officer, as provided for in Section 1405 of Title 6 of the Oklahoma Statutes;

33. Receipt of deposits while insolvent, as provided for in Section 1406 of Title 6 of the Oklahoma Statutes;

34. Unlawful service as bank officer or director, as provided for in Section 1407 of Title 6 of the Oklahoma Statutes;

35. Serving as bank commissioner, administrative assistant, or assistant banking commissioner with a felony conviction, as provided for in Section 1408 of Title 6 of the Oklahoma Statutes;

36. Concealing bank transaction, as provided for in Section 1409 of Title 6 of the Oklahoma Statutes;

37. Improper maintenance of accounts or false or deceptive entries and statements, as provided for in Section 1410 of Title 6 of the Oklahoma Statutes;

38. Payment of penalties and judgments against others, as provided for in Section 1411 of Title 6 of the Oklahoma Statutes;

39. Embezzlement of bank funds, as provided for in Section 1412 of Title 6 of the Oklahoma Statutes;

40. Circulation of statement or representation for the purpose of injuring any bank institution, as provided for in Section 1413 of Title 6 of the Oklahoma Statutes;

41. Authorizing, executing, or ratifying a criminal offense, as provided for in subsection A of Section 1414 of Title 6 of the Oklahoma Statutes;

42. Violation of any lawful order of the Board or Commissioner, as provided for in subsection C of Section 1414 of Title 6 of the Oklahoma Statutes;

43. Bank advertising with confusingly similar name, as provided for in subsection A of Section 1417 of Title 6 of the Oklahoma Statutes;

44. Using shortened confusingly similar name for advertising, as provided for in subsection B of Section 1417 of Title 6 of the Oklahoma Statutes;

45. Acquiring another bank but using former name, as provided for in subsection C of Section 1417 of Title 6 of the Oklahoma Statutes;

46. Non-banking business using confusingly similar name, as provided for in subsection D of Section 1417 of Title 6 of the Oklahoma Statutes;

47. Intentionally making a false statement, misrepresentation, or false certification in a record filed or required to be maintained under the Oklahoma Money Transmission Modernization Act or intentionally making a false entry or omitting a material entry in such a record, as provided for in subsection A of Section 41 of this act;

48. Knowingly engaging in an activity for which a license is required under the Oklahoma Money Transmission Modernization Act without being licensed, as provided for in subsection B of Section 41 of this act;

49. Registered sex offender providing services in a child care facility, as provided for in subsection F of Section 404.1 of Title 10 of the Oklahoma Statutes;

~~48.~~ 50. Failure to report child abuse, as provided for in subsection C of Section 1-2-101 of Title 10A of the Oklahoma Statutes;

~~49.~~ 51. Interception of wire, oral, or electronic communication, as provided for in paragraph 1 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~50.~~ 52. Using devices to intercept oral communication, as provided for in paragraph 2 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~51.~~ 53. Disclosing contents of wire, oral, or electronic communication, as provided for in paragraph 3 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~52.~~ 54. Using contents of wire, oral, or electronic communication, as provided for in paragraph 4 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~53.~~ 55. Removing, injuring, or obstructing telephone line, as provided for in paragraph 5 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~54.~~ 56. Carrying devices for interception of wire, oral, or electronic communication, as provided for in paragraph 6 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~55.~~ 57. Making devices for interception of wire, oral, or electronic communication, as provided for in paragraph 7 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~56.~~ 58. Using communication facility in committing felonies, as provided for in paragraph 8 of Section 176.3 of Title 13 of the Oklahoma Statutes;

~~57.~~ 59. Violation of the Oklahoma Consumer Protection Act, as provided for in Section 753 of Title 15 of the Oklahoma Statutes;

~~58.~~ 60. Violation of the Home Repair Fraud Act, as provided for in Section 765.3 of Title 15 of the Oklahoma Statutes;

~~59.~~ 61. Conduct closing-out sale without license, as provided for in Section 767 of Title 15 of the Oklahoma Statutes;

~~60.~~ 62. Violation of the Unlawful Electronic Mail Act, as provided for in Section 776.1 of Title 15 of the Oklahoma Statutes;

~~61.~~ 63. Violation of the Unlawful Electronic Mail Act for commercial electronic mail, as provided for in Section 776.6 of Title 15 of the Oklahoma Statutes;

~~62.~~ 64. Conceal or destroy corporation records, as provided for in Section 16 of Title 17 of the Oklahoma Statutes;

~~63.~~ 65. Misapplication of funds, as provided for in Section 411 of Title 18 of the Oklahoma Statutes;

~~64.~~ 66. Solicit funds to secure old age assistance by deception or fraud, as provided for in Section 553.1 of Title 18 of the Oklahoma Statutes;

~~65.~~ 67. Inspector, judge, or clerk refusing to extend or enforce the right to sign and deliver the certificate of election votes, as provided for in Section 90 of Title 19 of the Oklahoma Statutes;

~~66.~~ 68. Knowing and willful failure or refusal to perform duties, as provided for in Section 91 of Title 19 of the Oklahoma Statutes;

~~67.~~ 69. County officer failing to make daily deposit, as provided for in Section 682 of Title 19 of the Oklahoma Statutes;

~~68.~~ 70. Use of false or illegal voucher by county official, as provided for in Section 686 of Title 19 of the Oklahoma Statutes;

~~69.~~ 71. Gift to influence legislator, as provided for in Section 318 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~70.~~ 72. Legislator receiving payoff for employment of other, as provided for in Section 321 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~71.~~ 73. Lobbying legislature on contingency fee basis, as provided for in Section 334 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~72.~~ 74. Furnishing public supplies for profit, as provided for in subsection A of Section 355 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~73.~~ 75. Purchase public supplies from business that employs family member or spouse with more than five percent (5%) interest, as provided for in subsection C of Section 355 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~74.~~ 76. Make false claim against the state, as provided for in subsection A of Section 358 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~75.~~ 77. Bribing an officer, as provided for in Section 381 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~76.~~ 78. Bribing participant or official in athletic contest, as provided for in Section 399 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~77.~~ 79. Engaging in pattern of criminal offenses, as provided for in Section 425 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~78.~~ 80. Escape from county or city jail, as provided for in subsection A of Section 443 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~79.~~ 81. Escape from the Department of Corrections or alternative incarceration, as provided for in subsection B of Section 443 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~80.~~ 82. Escape from juvenile detention facility, as provided for in subsection E of Section 443 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~81.~~ 83. Unauthorized entry into penal institution or jail, as provided for in Section 445 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~82.~~ 84. Preparing false evidence, as provided for in Section 453 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~83.~~ 85. Bribing witness to falsely testify, as provided for in Section 456 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~84.~~ 86. Larceny or destruction of records by clerk or officer, as provided for in Section 461 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~85.~~ 87. Larceny or destruction of records by person other than officers, as provided for in Section 462 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~86.~~ 88. Offer forged or false instruments for the record, as provided for in Section 463 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~87.~~ 89. Perjury, as provided for in Section 491 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~88.~~ 90. Contradictory statements as perjury, as provided for in Section 496 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~89.~~ 91. Perjury by subornation, as provided for in Section 504 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~90.~~ 92. Falsify public record, as provided for in Section 531 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~91.~~ 93. Fortifying access point to place where felony is being committed, as provided for in Section 540C of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~92.~~ 94. Compounding a crime, as provided for in Section 543 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~93.~~ 95. Substitute a child to deceive a parent or guardian, as provided for in Section 579 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~94.~~ 96. Record, listen to, or observe jury proceedings, as provided for in Section 588 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~95.~~ 97. Abuse, sexual abuse, or exploitation of a vulnerable adult, as provided for in subsection A of Section 843.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~96.~~ 98. Neglect of a vulnerable adult, as provided for in subsection B of Section 843.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~97.~~ 99. Procuring an abortion, as provided for in Section 861 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~98.~~ 100. Adultery, as provided for in Section 871 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~99.~~ 101. Bigamy, as provided for in Section 881 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~100.~~ 102. Knowingly marrying a bigamist, as provided for in Section 884 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~101.~~ 103. Confidence game by cards, as provided for in Section 954 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~102.~~ 104. Dealing in gambling devices, as provided for in Section 984 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~103.~~ 105. Install communication of gambling information, as provided for in Section 986 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~104.~~ 106. Dissemination of gambling information, as provided for in Section 987 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~105.~~ 107. Conspiracy to violate gambling laws, as provided for in Section 988 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~106.~~ 108. Engaging in prostitution while HIV-infected, as provided for in subsection B of Section 1031 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~107.~~ 109. Engage in or operate prostitution within one thousand (1,000) feet of a school or church, as provided for in subsection D of Section 1031 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~108.~~ 110. Interactive computer service provider failing to remove child pornography, third or subsequent offense, as provided for in Section 1040.80 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~109.~~ 111. Gain or attempt to gain value from nonconsensual dissemination of private sexual images, as provided for in subsection G of Section 1040.13b of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~110.~~ 112. Sex offender entering safety zone around school, as provided for in Section 1125 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~111.~~ 113. Unlawful removal of dead body, as provided for in Section 1161 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~112.~~ 114. Purchasing or receiving dead body, as provided for in Section 1162 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~113.~~ 115. Using photographic, electronic, or video equipment in clandestine manner, as provided for in subsection B of Section 1171 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~114.~~ 116. Obscene, threatening, or harassing phone call, second or subsequent offense, as provided for in Section 1172 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~115.~~ 117. Spreading infectious diseases, as provided for in Section 1192 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~116.~~ 118. Altering livestock appearance for exhibition, second or subsequent offense, as provided for in Section 1229 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~117.~~ 119. Unlawfully transport hazardous waste, as provided for in Section 1230.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~118.~~ 120. Unlawful waste management, as provided for in Section 1230.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~119.~~ 121. False statements and acts concerning permits and waste, as provided for in Section 1230.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~120.~~ 122. Unlawful disposal of hazardous waste, as provided for in Section 1230.6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~121.~~ 123. Attempts to violate the Sabotage Prevention Act, as provided for in Section 1265.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~122.~~ 124. Carry weapon with intent to injure another, as provided for in Section 1278 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~123.~~ 125. Teaching, demonstrating, or training use of firearms in furtherance of riot, as provided for in Section 1320.10 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~124.~~ 126. Delivering fraudulent bill of lading, as provided for in Section 1411 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~125.~~ 127. Maintaining fraudulent warehouse receipts, as provided for in Section 1412 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~126.~~ 128. Issuing duplicate bills of lading or warehouse receipts, as provided for in Section 1414 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~127.~~ 129. Selling goods without consent of holder of bill of lading, as provided for in Section 1415 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~128.~~ 130. Unlawful delivery of goods, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in paragraph 3 of Section 1416 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~129.~~ 131. Burglary in the third degree, as provided for in subsection B of Section 1435 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~130.~~ 132. Embezzlement of property, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1451 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~131.~~ 133. Extortion, as provided for in Section 1481 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~132.~~ 134. Extortion induced by threats, as provided for in Section 1482 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~133.~~ 135. Obtain signatures by extortion, as provided for in Section 1485 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~134.~~ 136. Extortion by threatening letter, as provided for in Section 1486 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~135.~~ 137. Blackmail, as provided for in Section 1488 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~136.~~ 138. Defrauding hotel, inn, or restaurant, value of One Thousand Dollars ($1,000.00) or more, as provided for in Section 1503 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~137.~~ 139. Renting motor vehicle with bogus check, value of One Thousand Dollars ($1,000.00) or more, as provided for in Section 1521 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~138.~~ 140. Receive money or property by impersonating another, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in paragraph 3 of Section 1532 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~139.~~ 141. False use of "State Police" with intent to communicate policing authority, and another is injured, defrauded, harassed, or vexed, as provided for in subsection G of Section 1533 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~140.~~ 142. Identity theft, as provided for in Section 1533.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~141.~~ 143. Felony value - false pretense, bogus check, con game, valued from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1541.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~142.~~ 144. Two or more false or bogus checks, valued from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1541.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~143.~~ 145. Obtaining money or property with false negotiable paper, as provided for in Section 1544 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~144.~~ 146. Signs credit or debit card with intent to defraud, as provided for in subsection ~~(a)~~ A of Section 1550.28 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~145.~~ 147. Possess credit or debit card of another with intent to defraud, as provided for in subsection ~~(b)~~ B of Section 1550.28 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~146.~~ 148. Possessing incomplete credit cards with intent to complete, as provided for in Section 1550.31 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~147.~~ 149. Possess firearm with altered ID during commission of a felony, as provided for in subsection A of Section 1550 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~148.~~ 150. Make, sell, or display false identification for felony purposes or to mislead police officer, as provided for in subsection C of Section 1550.41 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~149.~~ 151. Forgery of state, public, court, or corporate seals, as provided for in Section 1571 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~150.~~ 152. Forgery of records, as provided for in Section 1572 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~151.~~ 153. Making false entry in records, as provided for in Section 1573 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~152.~~ 154. Forgery of certification or acknowledgement of conveyance, as provided for in Section 1574 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~153.~~ 155. Forgery II / Forgery III, valued from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1577 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~154.~~ 156. Possession of forged evidence of debt, valued from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1578 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~155.~~ 157. Possession of other forged instrument, valued from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1579 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~156.~~ 158. Issuing spurious or false certificates of stock, as provided for in Section 1580 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~157.~~ 159. Reissuing canceled certificates of stock, as provided for in Section 1581 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~158.~~ 160. Issuing or pledging false evidence of debt, as provided for in Section 1582 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~159.~~ 161. Counterfeiting coin, as provided for in Section 1583 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~160.~~ 162. Counterfeiting coin for exportation, as provided for in Section 1584 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~161.~~ 163. Forging process of court or title to property, as provided for in Section 1585 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~162.~~ 164. Making false entries in public book, as provided for in Section 1586 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~163.~~ 165. Forging tickets of passage, as provided for in Section 1587 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~164.~~ 166. Forging postage stamps, as provided for in Section 1588 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~165.~~ 167. Falsification of corporate records, as provided for in Section 1589 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~166.~~ 168. Employee making false entries, as provided for in Section 1590 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~167.~~ 169. Possessing counterfeit coin with intent to circulate, as provided for in Section 1591 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~168.~~ 170. Uttering forged instruments, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1592 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~169.~~ 171. Falsely procuring another’s signature, as provided for in Section 1593 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~170.~~ 172. Utter signature of another with same name, as provided for in Section 1622 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~171.~~ 173. Uttering one's endorsement as another's, as provided for in Section 1623 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~172.~~ 174. Erasure or alterations with intent to defraud, as provided for in Section 1624 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~173.~~ 175. Sign fictitious name as officer of corporation, as provided for in Section 1626 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~174.~~ 176. Fraudulent insolvency of corporation, as provided for in Section 1639 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~175.~~ 177. Workers' compensation fraud, as provided for in Section 1663 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~176.~~ 178. Willfully poisoning animal, as provided for in Section 1681 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~177.~~ 179. Larceny of lost property, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in paragraph 3 of Section 1702 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~178.~~ 180. Grand larceny, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1705 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~179.~~ 181. Larceny of written instrument, as provided for in Section 1709 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~180.~~ 182. Receive, possess, or conceal stolen property, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1713 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~181.~~ 183. Bringing stolen property into state, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in Section 1715 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~182.~~ 184. Larceny of dogs, as provided for in Section 1718 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~183.~~ 185. Larceny of or receiving stolen fowls, as provided for in Section 1719 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~184.~~ 186. Larceny of domesticated fish or game, value One Thousand Dollars ($1,000.00) or more, as provided for in Section 1719.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~185.~~ 187. Larceny of auto, aircraft, or other motor vehicle, value less than Fifty Thousand Dollars ($50,000.00), as provided for in Section 1720 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~186.~~ 188. Larceny from building or house, as provided for in Section 1723 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~187.~~ 189. Possession of mercury, as provided for in Section 1726 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~188.~~ 190. Entering with intent to steal copper, as provided for in Section 1727 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~189.~~ 191. Possessing, receiving, or transporting stolen copper, as provided for in Section 1728 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~190.~~ 192. Larceny of merchandise from retailer, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in subsection A of Section 1731 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~191.~~ 193. Larceny of trade secrets, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in Section 1732 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~192.~~ 194. Procuring, selling, or receiving telephone records by fraud (single telephone record), as provided for in subsection A of Section 1742.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~193.~~ 195. Injury to or obstruction of railroad, as provided for in Section 1751 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~194.~~ 196. Interfering with railroad, as provided for in Section 1752.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~195.~~ 197. Possess, use, manufacture, or threaten to use incendiary device or explosives without injury, as provided for in Section 1767.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~196.~~ 198. Removing or injuring piles securing bank or dam, as provided for in Section 1777 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~197.~~ 199. Maliciously injuring written instrument, value from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in Section 1779 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~198.~~ 200. Place hard object or inflammable object in grain or cotton, as provided for in Section 1837 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~199.~~ 201. Selling five or more unlawful telecommunication devices within six (6) months, as provided for in subsection B of Section 1873 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~200.~~ 202. Manufacturing five or more unlawful telecommunications devices within six (6) months, as provided for in subsection B of Section 1874 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~201.~~ 203. Unauthorized removal of baggage or cargo from bus or terminal, as provided for in Section 1904 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~202.~~ 204. Access computer system or network with unlawful intent, as provided for in Section 1958 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~203.~~ 205. Reproduction of sound recording without consent, one hundred (100) or more articles, as provided for in Section 1976 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~204.~~ 206. Unlawfully sell sound recordings, as provided for in Section 1977 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~205.~~ 207. Broadcast or live recording for sale without consent, as provided for in Section 1978 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~206.~~ 208. Rent or sell articles without true name of manufacturer, as provided for in Section 1979 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~207.~~ 209. Counterfeiting recording or article label, as provided for in Section 1980 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~208.~~ 210. Violation of Trademark Anti-Counterfeiting Act, as provided for in Section 1990.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~209.~~ 211. Tampering with security equipment, as provided for in Section 1993 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~210.~~ 212. Sex offender engaging in ice cream truck vending, as provided for in Section 2100.1 of ~~Title 21 of the Oklahoma Statutes~~ this title;

~~211.~~ 213. Protective order violation, second or subsequent offense, as provided for in subsection A of Section 60.6 of Title 22 of the Oklahoma Statutes;

~~212.~~ 214. Protective order violation resulting in physical injury, as provided for in subsection B of Section 60.6 of Title 22 of the Oklahoma Statutes;

~~213.~~ 215. Disposal of seized liquor by officer, as provided for in Section 1263 of Title 22 of the Oklahoma Statutes;

~~214.~~ 216. False affidavits, as provided for in Section 1264 of Title 22 of the Oklahoma Statutes;

~~215.~~ 217. Interfering with voting machine, as provided for in Section 9-118 of Title 26 of the Oklahoma Statutes;

~~216.~~ 218. Voting illegally, as provided for in Section 16-102 of Title 26 of the Oklahoma Statutes;

~~217.~~ 219. Removing ballot from or carrying ballot into polling place, as provided for in Section 16-102.1 of Title 26 of the Oklahoma Statutes;

~~218.~~ 220. False application for an absentee ballot, as provided for in Section 16-102.2 of Title 26 of the Oklahoma Statutes;

~~219.~~ 221. False affidavit in voting registration, as provided for in Section 16-103 of Title 26 of the Oklahoma Statutes;

~~220.~~ 222. Causing unqualified persons to be invalidly registered, as provided for in Section 16-103.1 of Title 26 of the Oklahoma Statutes;

~~221.~~ 223. False notarization of absentee ballot, as provided for in Section 16-104 of Title 26 of the Oklahoma Statutes;

~~222.~~ 224. Perpetrate fraud or theft to affect election, as provided for in Section 16-105 of Title 26 of the Oklahoma Statutes;

~~223.~~ 225. Bribes to influence votes, as provided for in Section 16-106 of Title 26 of the Oklahoma Statutes;

~~224.~~ 226. Offer bribe to withdraw as candidate, as provided for in Section 16-107 of Title 26 of the Oklahoma Statutes;

~~225.~~ 227. Solicit or accept bribe for withdrawal of candidacy, as provided for in Section 16-108 of Title 26 of the Oklahoma Statutes;

~~226.~~ 228. Prevent person from registering to vote or voting, as provided for in Section 16-109 of Title 26 of the Oklahoma Statutes;

~~227.~~ 229. Printing or possession of ballots illegally, as provided for in Section 16-120 of Title 26 of the Oklahoma Statutes;

~~228.~~ 230. Violation of the Oklahoma Pollutant Discharge Elimination System Act, as provided for in subsection G of Section 2-6-206 of Title 27A of the Oklahoma Statutes;

~~229.~~ 231. Falsely state information to the Department of Environmental Quality, as provided for in Section 2-7-109 of Title 27A of the Oklahoma Statutes;

~~230.~~ 232. Falsify information on permit application for Oklahoma Solid Waste Management Act, as provided for in Section 2-10-302 of Title 27A of the Oklahoma Statutes;

~~231.~~ 233. Violation of use of solid waste disposal sites, as provided for in Section 2-10-801 of Title 27A of the Oklahoma Statutes;

~~232.~~ 234. Filing false sale with Insurance Commissioner, as provided for in Section 311.1 of Title 36 of the Oklahoma Statutes;

~~233.~~ 235. Selling insurance with revoked or suspended license, as provided for in subsection A of Section 1435.26 of Title 36 of the Oklahoma Statutes;

~~234.~~ 236. Aiding or conspiring with a person whose insurance license is revoked or suspended, as provided for in subsection B of Section 1435.26 of Title 36 of the Oklahoma Statutes;

~~235.~~ 237. False statements, reports, or filings with intent to deceive Insurance Commissioner, as provided for in subsection E of Section 1643 of Title 36 of the Oklahoma Statutes;

~~236.~~ 238. Violation of the Viatical Settlements Act of 2008, value from Five Hundred Dollars ($500.00) to Two Thousand Five Hundred Dollars ($2,500.00), as provided for in subsection F of Section 4055.14 of Title 36 of the Oklahoma Statutes;

~~237.~~ 239. Violation of prepaid funeral provisions, as provided for in Section 6130 of Title 36 of the Oklahoma Statutes;

~~238.~~ 240. Out-of-state retailer shipping alcoholic beverages into state, as provided for in Section 3-101 of Title 37A of the Oklahoma Statutes;

~~239.~~ 241. Permit invitee under twenty-one (21) to possess or consume alcohol, as provided for in subsection A of Section 6-101 of Title 37A of the Oklahoma Statutes;

~~240.~~ 242. Permit invitee under twenty-one (21) to possess or consume alcohol resulting in great bodily injury or death, as provided for in subsection C of Section 6-101 of Title 37A of the Oklahoma Statutes;

~~241.~~ 243. Sale of alcoholic beverages outside of authorized day or hours, as provided for in Section 6-123 of Title 37A of the Oklahoma Statutes;

~~242.~~ 244. Disclosing confidential information concerning violation of Employment Security Act of 1980, as provided for in Section 4-508 of Title 40 of the Oklahoma Statutes;

~~243.~~ 245. Hiring armed guards without permit, as provided for in Section 169 of Title 40 of the Oklahoma Statutes;

~~244.~~ 246. Causing employee death by commanding to enter steam boiler, as provided for in Section 183 of Title 40 of the Oklahoma Statutes;

~~245.~~ 247. False statement about lien by contractor, as provided for in Section 142.4 of Title 42 of the Oklahoma Statutes;

~~246.~~ 248. Mechanics liens/embezzlement, valued from Two Thousand Five Hundred Dollars ($2,500.00) to Fifteen Thousand Dollars ($15,000.00), as provided for in Section 142.6 of Title 42 of the Oklahoma Statutes;

~~247.~~ 249. Marrying prohibited persons, as provided for in Section 14 of Title 43 of the Oklahoma Statutes;

~~248.~~ 250. Bigamy and remarriage, as provided for in Section 123 of Title 43 of the Oklahoma Statutes;

~~249.~~ 251. Mistreatment of mental health patient, as provided for in Section 2-219 of Title 43A of the Oklahoma Statutes;

~~250.~~ 252. Violation of opioid substitution treatment program, as provided for in Section 3-601 of Title 43A of the Oklahoma Statutes;

~~251.~~ 253. Coerce another to execute a declaration of revocation of an advanced directive, as provided for in subsection D of Section 11-113 of Title 43A of the Oklahoma Statutes;

~~252.~~ 254. Unauthorized use of implement of husbandry, as provided for in subsection B of Section 4-102 of Title 47 of the Oklahoma Statutes;

~~253.~~ 255. Receive, possess, or conceal implement of husbandry, as provided for in subsection B of Section 4-103 of Title 47 of the Oklahoma Statutes;

~~254.~~ 256. Removed, falsified, or unauthorized identification, as provided for in subsection A of Section 4-107 of Title 47 of the Oklahoma Statutes;

~~255.~~ 257. Buy, receive, possess, or sell motor vehicle with VIN removed or defaced with intent to conceal, as provided for in subsection C of Section 4-107 of Title 47 of the Oklahoma Statutes;

~~256.~~ 258. Destroying, removing, altering, covering, or counterfeiting trim tag plates, as provided for in Section 4-107a of Title 47 of the Oklahoma Statutes;

~~257.~~ 259. Misuse of manufactured home certificate of title, as provided for in subsection B of Section 4-110 of Title 47 of the Oklahoma Statutes;

~~258.~~ 260. Alter manufactured home certificate of title, as provided for in subsection B of Section 4-110 of Title 47 of the Oklahoma Statutes;

~~259.~~ 261. Remove receipt with intent to misrepresent payment of tax or fees, as provided for in subsection B of Section 4-110 of Title 47 of the Oklahoma Statutes;

~~260.~~ 262. Purchase registration receipt on assigned certificate of title, as provided for in subsection B of Section 4-110 of Title 47 of the Oklahoma Statutes;

~~261.~~ 263. Misuse of forged, counterfeit, or suspended driver license, as provided for in Section 6-301 of Title 47 of the Oklahoma Statutes;

~~262.~~ 264. Perjury through false affidavit, as provided for in Section 6-302 of Title 47 of the Oklahoma Statutes;

~~263.~~ 265. Interference with traffic control device resulting in injury or death, as provided for in subsection B of Section 11-207 of Title 47 of the Oklahoma Statutes;

~~264.~~ 266. Buy, sell, or dispose vehicle with altered VIN, chop shop, as provided for in subsection C of Section 1503 of Title 47 of the Oklahoma Statutes;

~~265.~~ 267. Attempt to violate chop shop laws, as provided for in subsection D of Section 1503 of Title 47 of the Oklahoma Statutes;

~~266.~~ 268. Perjury before the Corporation Commission, as provided for in Section 108 of Title 52 of the Oklahoma Statutes;

~~267.~~ 269. Delay probation duties of the Corporation Commission with use or attempted use of firearms, as provided for in Section 114 of Title 52 of the Oklahoma Statutes;

~~268.~~ 270. Conspiracy to violate Oklahoma Oil and Gas Conservation Act, as provided for in Section 115 of Title 52 of the Oklahoma Statutes;

~~269.~~ 271. Corruption of Corporation Commission, as provided for in Section 117 of Title 52 of the Oklahoma Statutes;

~~270.~~ 272. Misappropriation of gas, as provided for in Section 235 of Title 52 of the Oklahoma Statutes;

~~271.~~ 273. Falsification of application for emergency relief, as provided for in Section 26.18 of Title 56 of the Oklahoma Statutes;

~~272.~~ 274. Medicaid fraud, as provided for in Section 1005 of Title 56 of the Oklahoma Statutes;

~~273.~~ 275. Fraudulently obtaining or receiving assistance, value of Five Thousand Dollars ($5,000.00) or more, as provided for in Section 1005.1 of Title 56 of the Oklahoma Statutes;

~~274.~~ 276. Carry contraband into jail or prison, as provided for in subsection B of Section 21 of Title 57 of the Oklahoma Statutes;

~~275.~~ 277. Possess cell phone in jail or prison, as provided for in subsection E of Section 21 of Title 57 of the Oklahoma Statutes;

~~276.~~ 278. Jail employee receiving compensation from inmate, value of Five Hundred Dollars ($500.00) or more, as provided for in Section 22 of Title 57 of the Oklahoma Statutes;

~~277.~~ 279. Use of convict labor on private property, as provided for in Section 222 of Title 57 of the Oklahoma Statutes;

~~278.~~ 280. Failure to comply with Mary Rippy Violent Crime Offenders Registration Act, as provided for in Section 599 of Title 57 of the Oklahoma Statutes;

~~279.~~ 281. Practicing dentistry without a license, as provided for in subsection B of Section 328.49 of Title 59 of the Oklahoma Statutes;

~~280.~~ 282. Giving false information to obtain license, as provided for in subsection B of Section 328.49 of Title 59 of the Oklahoma Statutes;

~~281.~~ 283. Impersonating a pharmacist, as provided for in Section 353.17A of Title 59 of the Oklahoma Statutes;

~~282.~~ 284. Alteration of prescription or unlawful dispensing of drugs, second violation, as provided for in Section 353.24 of Title 59 of the Oklahoma Statutes;

~~283.~~ 285. False representation in procuring license under the Oklahoma Pharmacy Act, as provided for in subsection B of Section 353.25 of Title 59 of the Oklahoma Statutes;

~~284.~~ 286. Cremation without license and permit, as provided for in Section 396.33 of Title 59 of the Oklahoma Statutes;

~~285.~~ 287. Practicing medicine without a license, as provided for in Section 491 of Title 59 of the Oklahoma Statutes;

~~286.~~ 288. Violation of the Oklahoma Osteopathic Medicine Act, as provided for in Section 638 of Title 59 of the Oklahoma Statutes;

~~287.~~ 289. Acting as building inspector without a license, as provided for in Section 1044 of Title 59 of the Oklahoma Statutes;

~~288.~~ 290. Affidavit as to undertaking, as provided for in Section 1322 of Title 59 of the Oklahoma Statutes;

~~289.~~ 291. Bail jumping, as provided for in Section 1335 of Title 59 of the Oklahoma Statutes;

~~290.~~ 292. False declaration of ownership in pawn shop, value of One Thousand Dollars ($1,000.00) or more, if property is firearms, or was acquired through robbery or burglary, as provided for in subsection C of Section 1512 of Title 59 of the Oklahoma Statutes;

~~291.~~ 293. Violation of Oklahoma Security Guard and Private Investigator Act, as provided for in subsection B of Section 1750.11 of Title 59 of the Oklahoma Statutes;

~~292.~~ 294. Collusion among bidders, as provided for in Section 115 of Title 61 of the Oklahoma Statutes;

~~293.~~ 295. Disclosure of terms of bids, as provided for in Section 116 of Title 61 of the Oklahoma Statutes;

~~294.~~ 296. False or illegal voucher by public official, as provided for in Section 81 of Title 62 of the Oklahoma Statutes;

~~295.~~ 297. Use of facsimile signature or seal with intent to defraud, as provided for in Section 604 of Title 62 of the Oklahoma Statutes;

~~296.~~ 298. Distribution of controlled substance, possession with intent, Schedule III, IV, and V drugs, as provided for in subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

~~297.~~ 299. Distribution of counterfeit controlled substance, possession with intent, Schedule III, IV, and V drugs, as provided for in subsection A of Section 2-401 of Title 63 of the Oklahoma Statutes;

~~298.~~ 300. Robbery of controlled dangerous substance, as provided for in subsection B of Section 2-403 of Title 63 of the Oklahoma Statutes;

~~299.~~ 301. Distribute or dispense controlled substance without required order form, as provided for in subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

~~300.~~ 302. Manufacture, distribute, or dispense controlled substance not authorized by registration, as provided for in subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

~~301.~~ 303. Omit, remove, alter, or obliterate symbol required on controlled substance, as provided for in subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

~~302.~~ 304. Refuse or fail to make, keep, or furnish required information, as provided for in subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

~~303.~~ 305. Refuse entry or inspection of premises with respect to controlled substance, as provided for in subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

~~304.~~ 306. Maintain place for keeping or selling controlled substance, as provided for in subsection A of Section 2-404 of Title 63 of the Oklahoma Statutes;

~~305.~~ 307. Sell, transfer, or provide money transmitter equipment to unlicensed person, second or subsequent offense, as provided for in subsection A of Section 2-503.1d of Title 63 of the Oklahoma Statutes;

~~306.~~ 308. Responsibility of permit holders, as provided for in subsection A of Section 124.8 of Title 63 of the Oklahoma Statutes;

~~307.~~ 309. Purchase or sell body parts for transplantation, as provided for in Section 2200.16A of Title 63 of the Oklahoma Statutes;

~~308.~~ 310. Falsification, forgery, concealment, defacement, or obliteration of document of gift, as provided for in Section 2200.17A of Title 63 of the Oklahoma Statutes;

~~309.~~ 311. Unlawful possession of vessel or motor, as provided for in Section 4209 of Title 63 of the Oklahoma Statutes;

~~310.~~ 312. Receive, possess, sell, or dispose of stolen vessel or motor, as provided for in Section 4209.1 of Title 63 of the Oklahoma Statutes;

~~311.~~ 313. Remove or alter ID number of vessel, as provided for in subsection B of Section 4209.2 of Title 63 of the Oklahoma Statutes;

~~312.~~ 314. Buy, receive, possess, or dispose of vessel with false ID number with intent to conceal, as provided for in subsection D of Section 4209.2 of Title 63 of the Oklahoma Statutes;

~~313.~~ 315. False statement in application for certificate of title for stolen vehicle, as provided for in Section 4209.3 of Title 63 of the Oklahoma Statutes;

~~314.~~ 316. Alteration or forging of vessel certificate of title, as provided for in Section 4209.4 of Title 63 of the Oklahoma Statutes;

~~315.~~ 317. Possess vessel with altered ID number, as provided for in subsection C of Section 4253 of Title 63 of the Oklahoma Statutes;

~~316.~~ 318. Destroying or falsifying checks to the Land Office, as provided for in Section 1026 of Title 64 of the Oklahoma Statutes;

~~317.~~ 319. Prospecting on public lands without permit, as provided for in Section 1094 of Title 64 of the Oklahoma Statutes;

~~318.~~ 320. Business for profit by a member of the Department of Transportation, as provided for in subsection B of Section 304 of Title 66 of the Oklahoma Statutes;

~~319.~~ 321. Business for profit by a member of the Department of Transportation, as provided for in subsection B of Section 324 of Title 66 of the Oklahoma Statutes;

~~320.~~ 322. Failure to comply with request for county records, as provided for in Section 83 of Title 67 of the Oklahoma Statutes;

~~321.~~ 323. Refusal to file tax return with intent to defraud, as provided for in Section 240.1 of Title 68 of the Oklahoma Statutes;

~~322.~~ 324. Filing false sales tax report, as provided for in Section 241 of Title 68 of the Oklahoma Statutes;

~~323.~~ 325. Possession of controlled dangerous substances without tax stamp, as provided for in Section 450.8 of Title 68 of the Oklahoma Statutes;

~~324.~~ 326. Remove tax stamp with intent to reuse, as provided for in Section 450.9 of Title 68 of the Oklahoma Statutes;

~~325.~~ 327. Making false oath to report required by Cotton Manufacturers Act, as provided for in Section 2003 of Title 68 of the Oklahoma Statutes;

~~326.~~ 328. File false income tax return with intent to defraud, as provided for in Section 2376 of Title 68 of the Oklahoma Statutes;

~~327.~~ 329. Fraudulent tax receipt by county treasurer, as provided for in Section 2920 of Title 68 of the Oklahoma Statutes;

~~328.~~ 330. False or fraudulent lists of taxable property, as provided for in Section 2945 of Title 68 of the Oklahoma Statutes;

~~329.~~ 331. False application under Oklahoma Quality Jobs Program Act, as provided for in Section 3609 of Title 68 of the Oklahoma Statutes;

~~330.~~ 332. False application under Former Military Facility Development Act, as provided for in Section 3807 of Title 68 of the Oklahoma Statutes;

~~331.~~ 333. False application under Oklahoma Specialized Quality Investment Act, as provided for in Section 4109 of Title 68 of the Oklahoma Statutes;

~~332.~~ 334. False application under Oklahoma Quality Investment Act, as provided for in Section 4209 of Title 68 of the Oklahoma Statutes;

~~333.~~ 335. Conflict of interest by a member of the Transportation Commission, as provided for in Section 310 of Title 69 of the Oklahoma Statutes;

~~334.~~ 336. Conflict of interest by a member of the Oklahoma Turnpike Authority, as provided for in Section 1705 of Title 69 of the Oklahoma Statutes;

~~335.~~ 337. Violation of Oklahoma Highway Code of 1968, as provided for in Section 1802 of Title 69 of the Oklahoma Statutes;

~~336.~~ 338. Conflict of interest by Oklahoma Educational Television Authority member, as provided for in Section 23-106 of Title 70 of the Oklahoma Statutes;

~~337.~~ 339. Alter or destroy audit records by Board of Regents, as provided for in subsection E of Section 3909 of Title 70 of the Oklahoma Statutes;

~~338.~~ 340. Authority to receive gifts or funds, as provided for in subsection B of Section 4306 of Title 70 of the Oklahoma Statutes;

~~339.~~ 341. Make takeover offer which is not effective under Oklahoma Take-over Disclosure Act of 1985, as provided for in subsection A of Section 453 of Title 71 of the Oklahoma Statutes;

~~340.~~ 342. Fraudulent, deceptive, or manipulative acts in takeover offer, as provided for in Section 455 of Title 71 of the Oklahoma Statutes;

~~341.~~ 343. Violation of Oklahoma Take-over Disclosure Act of 1985, as provided for in Section 460 of Title 71 of the Oklahoma Statutes;

~~342.~~ 344. Conflict of interest by Oklahoma Capitol Improvement Authority member, as provided for in Section 162 of Title 73 of the Oklahoma Statutes;

~~343.~~ 345. Fraud in obtaining certification as a minority business, as provided for in Section 85.45h of Title 74 of the Oklahoma Statutes;

~~344.~~ 346. False statement for small business surety bond guarantee, as provided for in Section 85.47h of Title 74 of the Oklahoma Statutes;

~~345.~~ 347. Forge or alter criminal history record, as provided for in subsection D of Section 150.9 of Title 74 of the Oklahoma Statutes;

~~346.~~ 348. Making or receiving kickback, as provided for in Section 3404 of Title 74 of the Oklahoma Statutes;

~~347.~~ 349. Pooling of bridge or highway contracts, as provided for in Section 101 of Title 79 of the Oklahoma Statutes;

~~348.~~ 350. Business for profit by Water Resources Board member, as provided for in Section 1086.3 of Title 82 of the Oklahoma Statutes;

~~349.~~ 351. Conflict of interest by water district official or employee, as provided for in Section 1281 of Title 82 of the Oklahoma Statutes;

~~350.~~ 352. Falsely executes a written declaration as a witness to a will, as provided for in paragraph 6 of Section 55 of Title 84 of the Oklahoma Statutes; and

~~351.~~ 353. False statement and misrepresentation, as provided for in Section 6 of Title 85A of the Oklahoma Statutes.

B. Any person convicted of a Class D1 criminal offense set forth in this section shall be punished by imprisonment in the custody of the Department of Corrections for a term of not more than five (5) years and shall serve at least twenty percent (20%) of the sentence imposed before release from custody including release to electronic monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma Statutes.

C. 1. Every person who, having been previously convicted of one or two Class C or Class D criminal offenses, commits a Class D1 criminal offense shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for a term of not less than one (1) year nor more than seven (7) years and shall serve at least twenty percent (20%) of the sentence imposed before release from custody including release to electronic monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma Statutes.

2. Every person who, having been previously convicted of three Class C or Class D criminal offenses, or one or more Class Y, Class A, or Class B criminal offenses, commits a Class D1 criminal offense shall, upon conviction, be punished by imprisonment in the custody of the Department of Corrections for a term of not less than two (2) years nor more than ten (10) years and shall serve at least thirty percent (30%) of the sentence imposed before release from custody including release to electronic monitoring pursuant to Section 510.9 of Title 57 of the Oklahoma Statutes.

D. Unless specifically exempted pursuant to subsection E of this section, Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title shall not apply to Class D1 criminal offenses.

E. The criminal offenses listed in paragraphs 98, 108, 212, 213, and 229 of subsection A of this section shall be exempt from the penalty provisions provided for in subsections B and C of this section. Persons convicted of the criminal offenses provided for in paragraphs 98, 108, 212, 213, and 229 of subsection A of this section shall be punished in accordance with the corresponding penalties provided for in the Oklahoma Statutes including Section 51.1 of ~~Title 21 of the Oklahoma Statutes~~ this title.

F. All Class D1 criminal offenses shall be punishable by the corresponding fines as provided for in the Oklahoma Statutes.

SECTION 47. AMENDATORY 21 O.S. 2021, Section 1268.8, as amended by Section 129, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1268.8), is amended to read as follows:

Section 1268.8. Any person who knowingly or intentionally uses a ~~money services~~ business engaged in money transmission, as defined by the ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma Money Transmission Modernization Act, or an electronic funds transfer network for any purpose in violation of the Oklahoma Antiterrorism Act, or with intent to facilitate any violation of the Oklahoma Antiterrorism Act shall, upon conviction, be guilty of a Class B4 felony offense punishable by imprisonment in the custody of the Department of Corrections for a term of not less than two (2) years nor more than ten (10) years, or by a fine of not more than Fifty Thousand Dollars ($50,000.00) or an amount equal to twice the dollar amount of each transaction, whichever is greater, or by both such fine and imprisonment.

SECTION 48. AMENDATORY 63 O.S. 2021, Section 2-503.1b, is amended to read as follows:

Section 2-503.1b. A. The Oklahoma State Bureau of Narcotics and Dangerous Drugs Control shall conduct a criminal financial check on all ~~registration~~ license applications submitted pursuant to the ~~provisions of Section 1513 of Title 6 of the Oklahoma Statutes~~ Oklahoma Money Transmission Modernization Act. The applicant ~~for a money services business license~~ shall pay a fee of Fifty Dollars ($50.00) to the Bureau for the criminal financial check prior to licensing. This shall be in addition to all other administrative fees imposed by the Oklahoma Banking Department.

B. The Oklahoma State Bureau of Narcotics and Dangerous Drugs Control shall have authority to access, review, and investigate any ~~registration~~ license application and ~~supplier reports~~ other documentation submitted to the Oklahoma State Banking Commissioner pursuant to ~~Section 1513 of Title 6 of the Oklahoma Statutes~~ the Oklahoma Money Transmission Modernization Act, for the purposes of criminal financial checks, identifying or investigating suspicious or illegal activities or to track illegal drug-related monies. A copy of all money services transaction reports provided to the Oklahoma State Banking Commissioner shall be provided to the Bureau.

SECTION 49. AMENDATORY 63 O.S. 2021, Section 2-503.1d, as amended by Section 278, Chapter 486, O.S.L. 2025 (63 O.S. Supp. 2025, Section 2-503.1d), is amended to read as follows:

Section 2-503.1d. A. No person shall sell, give, transfer, trade, supply, or provide any money transmitter equipment~~, as defined by the Oklahoma Financial Transaction Reporting Act,~~ to any person not licensed by the Oklahoma State Banking Commissioner. Any person violating the provisions of this section shall be guilty upon conviction of a misdemeanor, for a first offense, and a Class D1 felony offense for any second or subsequent offense. The misdemeanor penalty shall be a fine not exceeding Three Thousand Dollars ($3,000.00), or imprisonment in the county jail not to exceed one (1) year, or both such fine and imprisonment. The Class D1 felony penalty shall be imprisonment as provided for in subsections B through F of Section 20N of Title 21 of the Oklahoma Statutes, or a fine not exceeding Five Thousand Dollars ($5,000.00), or both such fine and imprisonment.

B. Any person who encourages, facilitates, or allows access to any money transmitter equipment in any manner to facilitate any violation of Section 2-503.1 of this title shall be guilty of a Class C2 felony offense, upon conviction, punishable as provided for in subsections B through F of Section 20M of Title 21 of the Oklahoma Statutes.

SECTION 50. AMENDATORY 63 O.S. 2021, Section 2-503.1e, as amended by Section 279, Chapter 486, O.S.L. 2025 (63 O.S. Supp. 2025, Section 2-503.1e), is amended to read as follows:

Section 2-503.1e. A. Any person who knowingly or intentionally uses a ~~money services~~ business <u>engaged in money transmission</u>, as defined by the ~~Oklahoma Financial Transaction Reporting Act~~ <u>Oklahoma Money Transmission Modernization Act</u>, or an electronic funds transfer network for any purpose in violation of Section 2-503.1 of this title or Sections 2-503.1a through 2-503.1i of this title, or with intent to facilitate any violation of the Uniform Controlled Dangerous Substances Act or any statute of the United States relating to controlled substances, or to commit any other crime shall be guilty, upon conviction, of a Class C2 felony offense and shall be punished by imprisonment as provided for in subsections B through F of Section 20M of Title 21 of the Oklahoma Statutes.

B. Any person who, by or through a ~~money services~~ business <u>engaged in money transmission</u>, as defined in the ~~Oklahoma Financial~~

~~Transaction Reporting Act~~ Oklahoma Money Transmission Modernization Act, or an electronic funds transfer network, knowingly transmits, exchanges, or processes any securities or negotiable instruments for any purpose in violation of Section 2-503.1 of this title or Sections 2-503.1a through 2-503.1i of this title shall be guilty, upon conviction, of a Class C2 felony offense and shall be punished by imprisonment as provided for in subsections B through F of Section 20M of Title 21 of the Oklahoma Statutes.

SECTION 51. AMENDATORY 63 O.S. 2021, Section 2-503.1h, is amended to read as follows:

Section 2-503.1h. A. Unless otherwise provided, any person convicted of violating any of the provisions of this act is guilty of a Class C2 felony and ~~may~~ shall be punished by imprisonment ~~for not less than two (2) years nor more than ten (10) years~~ as provided for in subsections B through F of Section 20M of Title 21 of the Oklahoma Statutes, or by a fine of not more than Fifty Thousand Dollars ($50,000.00) or an amount equal to twice the dollar amount of each transaction, whichever is greater, or by both such fine and imprisonment.

B. For the purposes of this act, the terms, "money transmitter equipment" or a "money transmitter service" shall include an entity or person engaged in activity in violation of these provisions regardless of whether the person or entity is licensed to conduct such activity under the ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma Money Transmission Modernization Act.

SECTION 52. AMENDATORY 63 O.S. 2021, Section 2-503.1i, is amended to read as follows:

Section 2-503.1i. A. The Oklahoma State Bureau of Narcotics and Dangerous Drugs Control shall have authority to intercept, seize and forfeit any funds or equipment in violation of any provision of the Drug Money Laundering and Wire Transmitter Act or in violation of Section 2-503.1 of this title.

B. A warrant for the seizure of property pursuant to Section 1222 of Title 22 of the Oklahoma Statutes may be issued by a district judge upon finding of probable cause for funds believed to be used or intended for any violation of the Uniform Controlled Dangerous Substances Act to any licensee under the ~~Oklahoma Financial Transaction Reporting Act~~ Oklahoma Money Transmission Modernization Act.

C. The State Banking Commissioner or designee upon receipt of an affidavit of probable cause from an agent of the Bureau, may issue an emergency notice requiring a temporary freeze on an account to any financial institution or ~~money services~~ business engaged in money transmission under its jurisdiction. Such freeze shall halt all transactions in the account. During the fifteen-day freeze, an account holder may file an emergency appeal to the district court. The district court shall schedule a hearing on the emergency appeal within three (3) judicial days of the request. The provisions of Section 2201 et seq. of Title 6 of the Oklahoma Statutes shall not apply to this section. This freeze shall not exceed fifteen (15) days and shall automatically expire unless:

1. A subsequent seizure warrant is issued by a district judge; or

2. A notice of forfeiture is filed on the contents of the account pursuant to Section 2-503 of this title.

D. No financial institution shall have liability to an account holder for acting pursuant to this section.

SECTION 53. AMENDATORY 63 O.S. 2021, Section 2-503.1j, is amended to read as follows:

Section 2-503.1j. A. Any licensee of a money transmission, transmitter, or wire transmitter business ~~pursuant to the Oklahoma Financial Transaction Reporting Act~~ licensed under the Oklahoma Money Transmission Modernization Act and their delegates shall collect a fee of Five Dollars ($5.00) for each transaction not in excess of Five Hundred Dollars ($500.00) and in addition to such fee an amount equal to one percent (1%) of the amount in excess of Five Hundred Dollars ($500.00).

B. The fee prescribed by subsection A of this section shall be remitted quarterly to the Oklahoma Tax Commission on such forms as the Commission, with the assistance of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, may prescribe for such purpose. All required forms and remittances shall be filed with the Tax Commission not later than the fifteenth day of the month following the close of each calendar quarter.

C. The Oklahoma Tax Commission shall apportion all revenues derived from the fee to the Drug Money Laundering and Wire Transmitter Revolving Fund.

D. Every licensee and their delegates shall post a notice on a form prescribed by the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control that notifies customers that upon filing an individual income tax return with either a valid social security number or a valid taxpayer identification number the customer shall be entitled to an income tax credit equal to the amount of the fee paid by the customer for the transaction.

E. The Oklahoma Tax Commission shall be afforded all provisions currently under law to enforce the provisions of subsection B of this section. If a licensee fails to file reports or fails to remit the fee authorized by subsection B of this section, the Oklahoma Tax Commission shall have the authority pursuant to Section 212 of Title 68 of the Oklahoma Statutes to suspend the license of the licensee and its delegates. A notification of the suspension shall also be sent to the State Banking Commissioner and the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control. The licensee and its delegates may not reapply for a license until all required reports have been filed and all required fee amounts have been remitted.

F. Upon request from the Oklahoma Tax Commission, the State Banking Commissioner may make a claim against the surety bond of the licensee on behalf of the State of Oklahoma.

G. The Oklahoma State Bureau of Narcotics and Dangerous Drugs Control and its attorneys may assist the Oklahoma Tax Commission in conducting audits and the prosecution and/or seeking of legal remedies to ensure compliance with this act.

SECTION 54. AMENDATORY 63 O.S. 2021, Section 2-503.1l, is amended to read as follows:

Section 2-503.1l. As used in the Drug Money Laundering and Wire Transmitter Act:

1. "Conducts" includes initiating, concluding, or participating in initiating, or concluding a transaction;

2. "Digital assets" means the same as defined in Section 1359 of Title 68 of the Oklahoma Statutes;

3. "Digital asset kiosk" means an electronic terminal acting as a mechanical agent of the digital asset kiosk operator to enable the digital asset kiosk operator to facilitate the exchange of digital assets for money, bank credit, or other digital asset including, but not limited to:

a. connecting directly to a separate digital asset exchange that performs the actual digital asset transmission, or

b. drawing upon the digital asset in the possession of the electronic terminal's operator;

4. "Digital asset kiosk operator" means a person or entity that owns, operates, or manages a digital asset kiosk located in this state offering digital asset kiosk transactions;

5. "Financial institution" includes:

a. any financial institution, as defined in Section 5312(a)(2) of Title 31 of the United States Code, or the regulations promulgated thereunder, and

b. any foreign bank, as defined in Section 3101 of Title 12 of the United States Code;

~~3.~~ 6. "Financial transaction" means:

a. a transaction which in any way or degree affects state, interstate or foreign commerce:

(1) involving the movement of funds by wire or other means,

(2) involving one or more monetary instruments, or

(3) involving the transfer of title to any real property, vehicle, vessel, or aircraft; or

b. a transaction involving the use of a financial institution which is engaged in, or the activities of which affect, state, interstate or foreign commerce

in any way or degree;

~~4.~~ 7. "Knowing that the property involved in a financial transaction represents the proceeds of some form of unlawful activity" means that the person knew the property involved in the transaction represented proceeds from some form, though not necessarily which form, of any violation of the Uniform Controlled Dangerous Substances Act;

~~5.~~ 8. "Monetary instruments" means:

a. coin or currency of the United States or of any other country, travelers' checks, personal checks, bank checks, and money orders, or

b. investment securities or negotiable instruments, in bearer form or otherwise in such form that title thereto passes upon delivery;

~~6.~~ 9. "Money transmitting" includes transferring funds by any and all means including, but not limited to, transfers within this state, country or to locations abroad by wire, check, draft, facsimile, or courier;

10. "Money transmitter equipment" means any type of terminal, machine, computer software, access to any network, or any other type of tangible or intangible apparatus or system, or any combination thereof, that may be used by a money transmitter to initiate a transmittal of currency or digital assets;

~~7.~~ 11. "Proceeds" means all things of value furnished, or intended to be furnished, in exchange for a controlled dangerous substance in violation of the Uniform Controlled Dangerous Substances Act, including all proceeds traceable to such an exchange, and all monies, negotiable instruments, and securities used, or intended to be used to facilitate any violation of the Uniform Controlled Dangerous Substances Act;

~~8.~~ 12. "Specified unlawful activity" means any violation of the Uniform Controlled Dangerous Substances Act; and

~~9.~~ 13. "Transaction" includes a purchase, sale, loan, pledge, gift, transfer, delivery, or other disposition, and with respect to a financial institution includes a deposit, withdrawal, transfer between accounts, exchange of currency, loan, extension of credit, purchase or sale of any stock, bond, certificate of deposit, or other monetary instrument, use of a safe deposit box, or any other payment, transfer, or delivery by, through, or to a financial institution, by whatever means effected.

SECTION 55. REPEALER 6 O.S. 2021, Sections 1511, 1512, 1513, 1514, and 1515, are hereby repealed.

SECTION 56. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

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Presiding Officer of the House of Representatives

Passed the Senate the 4th day of May, 2026.

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Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this ____________________ day of ___________________, 20_______, at _______ o'clock _______ M.

By: _________________________________

Approved by the Governor of the State of Oklahoma this _________ day of ___________________, 20_______, at _______ o'clock _______ M.

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Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this __________ day of ___________________, 20_______, at _______ o'clock _______ M.

By: _________________________________